

RIYA ENTERPRISES

Specialist in Space Planning, Interior Decorations & Management, Project work and all type of office maintenance activities.

Off.: -C-19, 2nd Floor (Above SBI Bank), Near Mrignaini Chowk, Dilshad Colony, New Delhi-110095.

PAN NO. AJJPR2794N GSTIN No.: 07AJJPR2794N1ZC

Contact: 9911992045

GENERAL CONDITIONS OF CONTRACT

19.0 DEFINITIONS AND TERMS:

In the contract (as hereinafter defined) the following words and expression shall have the meaning hereby assigned to them except wherein the context otherwise required. (Referred to in Condition 1 of "Articles of Agreement")

Sl. No.	Term	Meaning
1	Employer	M/s. COMPASS India Food Services Pvt Ltd
2	Company means	M/s. Compass India Food Services Pvt Ltd, Eco Kitchen 8/15, Harichandra III Cross Street, Injambakkam, Chennai – 600115. and shall include their assigns and successors in law and their duly authorized representatives to act on its behalf.
3	Architect / Consultant shall mean	One who designs and supervises the construction of buildings or other large structure and shall include competent external service consultants who are as part of the Architect's team, who shall be specialists in their respective disciplines where required. Carry out quality assurance checks and adhere to maintain site-change management report, Review and update of master schedule etc.
4	Tenderer shall mean	The firm / party / Individual who will quote against enquiry.
5	Engineer In Charge means	The Engineer appointed or authorized by the Employer to carry out and issue all the instructions on behalf of the Client in respect to the execution of the works at the site.
6	Green Consultant means	An agency appointed to guide in designing an ecological & environment friendly building.
7	PMC means	Clerk of Works appointed by Employer to inspect and certify measurements of the Works at Site and Project management of Premises covering review, Co-ordination between Builder, Architects and Owner and over all monitoring, maintaining, auditing & managing the work & who will oversee all aspects of the project from planning, cost control to quality control and shall include competent external service consultants as part of the EMPLOYER's team, who shall be specialists in their respective disciplines where required.
8	Contractor	shall mean the successful tenderer whose tender has been accepted by Employer and who has executed the Articles of Agreement and has agreed to construct a warm shell building as per the terms and conditions specified in the Contract Documents and shall include its successors in interest.
9	Bidder shall mean	Any firm(s) or person(s), entrepreneur offering the solution(s), service(s) and / or material(s) required in the tender. The word "Bidder" when used in the pre award period shall be synonymous

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		with "Contractor" which will be used after award of the contract.
10	Contract Price means	The price payable to the Contractor under the Contract for the full and proper performance of its contractual obligations contained in the Contract Documents.
11	Constructional Plant means	All appliances / equipment or things of whatsoever nature required in or about the execution or Final Completion of the works but does not include materials or other things intended to form or forming part of the permanent works.
12	Temporary Works means	All temporary works of every kind required in or about the execution or maintenance of the works.
13	Permanent Works means	The permanent works to be executed and maintained in accordance with the contract. The details of the Permanent Works are set out in drawings.
14	Drawings means	The drawings referred to in the specification and any modification for such drawings approved in writing by the Client and such other drawings as may, from time to time be furnished or approved in writing by the Client.
15	Approved means	Approved in writing by the Client as applicable including subsequent written confirmation of previous verbal approval and "approval" means approval in writing, including as aforesaid.
16	Contract Documents	Shall have the meaning given to it in Clause 19.7 of the General Conditions of Contract.
17	Day shall mean	Working day.
18	Maintenance means	Up keep of all civil & services works.
19	Main Contractor means	One that agrees to execute all works mentioned in the tender at a specified price, and sub contracts to the respective agencies.
20	Sub-Contractor means	An individual or in many cases a business that signs a contract to perform part or all of the obligations of another's contract.
21	Supplier means	One who supplies materials, products, or services to others; firm in either the wholesale or the retail supply business.
22	Manufacturer means	A manufacturer is simply a producer. Someone who assembles and builds an actual physical product, rather than selling a service, experience, or idea.
23	Services or Work or Job means	The terms services / job / works have been interchangeably used in the Contract Documents, they unless repugnant to the context, shall mean the service / job / work to be executed by the Contractor / subcontractor / labour in accordance with the Contract Documents including all permanent works and temporary works and any material, plant or machinery to be supplied, delivered and installed.

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24	Items means	All goods which the Contractor is required to supply under the Contract and includes all parts and units thereof.
25	Writing means	Any manuscript, typewritten or printed statement under or over signature or seal as the case may be.
26	Specification shall mean	Shall mean the specifications detailed in the Contract Documents and includes general specification, technical specification and drawings and any modification thereof or addition thereto as may from time to time be furnished or approved in writing by Employer for constructing the Warm Shell Building.
27	This contract shall mean	Invitation to tender, Notice Inviting Tender, Form of Tender, Instruction to Tenderers, Special Conditions, General Conditions of Contract, Technical Specifications for Structural & civil works with rates and correspondences or negotiations if any.
28	Site shall mean	All that piece and parcel of land bearing M/s Compass India Food Services Pvt Ltd, # _____ Site area – 19,450 sq. ft
29	The "Project" shall mean	Building comprises of Ground Floor + 1 floors + Terrace and of Total Built up area 19,450 sq.ft
30	Month shall means	Thirty days.
31	Award shall means	The written acceptance given to the successful tenderer by Employer / Engineering in Charge.
32	Cost means	The word "Cost" shall be deemed to be all inclusive also including overhead costs and all taxes whether on or off the site.
33	Retention amount shall mean	The money deducted and retained by Employer from the running bills as per the terms of the Contract Documents without any obligation to pay interest on the same.
34	Date of Commencement	Date of Handing over of site or date of issue of LOI to commence the work whichever is later.
35	Period of Completion	2 months from date of issue of LOI or date of Handing over of site whichever is later.
36	Date of Virtual Completion	The date of completion of the Work or specified portion of the Work is the date when construction is sufficiently completed, in accordance with the Contract Documents as modified by any change or variation order agreed to by the parties, so that Employer can take over such completed work and occupy for the use it was intended.
37	Defects Liability Period	12 (Twelve) Months from the Date of Virtual Completion of all Works.
38	Provisional Sum	means a sum (if any) which is specified in the Contract as a

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		provisional sum, for the execution of any part of the Works or for the supply of Plant, Materials or services.
39	Contractor's Equipment	means all apparatus, machinery, vehicles and other things required for the execution and completion of the Works and the remedying of any defects. However, Contractor's Equipment excludes Temporary Works, Employer's Equipment (if any), Plant, Materials and any other things intended to form or forming part of the Permanent Works.
40	Goods	means Contractor's Equipment, Materials, Plant and Temporary Works, or any of them as appropriate.
41	Materials	means things of all kinds (other than Plant) intended to form or forming part of the Permanent Works, including the supply-only materials (if any) to be supplied by the Contractor under the Contract.
42	Period of Final Measurement	45 (Forty Five) days from the date of Virtual Completion of all Works subject to successful completion of an audit by Employer or its representatives based on the inputs provided by the Contractor, duly verified by Engineer In Charge.
43	Warm Shell means	The term Warm shell shall mean completion of the following activities in an air tight and water tight manner to the satisfaction of Employer: • RCC frame work • Structural steel work • Finishes work • High side power • 100% power back up • High side Air-conditioner with chillers and AHUs • Plumbing • Fire hydrants and tap off for sprinklers

19.0.0 PROJECT IN CHARGE / ENGINEER IN CHARGE

Duties and Responsibilities of the Project in charge / Engineer In Charge

The Duties and Responsibilities of the Project In charge / Engineer In Charge shall be as follows:

- Instructions in matters pertaining to the drawings, technical specifications and execution of the work.
- Give notice to the contractor / his representative of non-approval of any work or materials and such work shall be suspended or the use of such materials shall be discontinued until the decision of the Project in charge, but such examination shall not in any way exonerate the contractor from the obligation to remedy any defects which may be found to exist at any stage of the works or after the same is completed.

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- c. Issue "Good for Construction" drawings to the site / Project in charge.
- d. Certification of Bills.
- e. Monitor the progress of work in relation to the programme furnished by the contractor.
- f. To inspect and approve the quality of materials and workmanship.
- g. To inspect and examine the work before covering up.
- h. Review Master project schedule.
- i. Ensure performance of the contract.
- j. To verify and certify measurements of the contractor's bills.
- k. Issue and co-ordinate Site operating procedures.
- l. Arrange site facilities and systems.
- m. Set start and control procedures.
- n. Review, monitor, and provide direction for changes.
- o. Organize in house and Project meetings.
- p. Co-ordinate and conduct project review meetings with various Contractors and subcontractors.
- q. Co-ordinate procurement of long delivery materials and Equipment.
- r. Monitor quality of work with special emphasis on the quality assurance plan.
- s. Initiate reporting systems – daily registers, material / manpower, weekly progress reports, resource allocation and deployment, monthly reports to Client, Safety, accident and reports, Quality control reports, sub-contractor status reports, change order procedures, etc.

Notwithstanding any of the above, the Project In charge shall without prejudice perform actions and deeds as also listed elsewhere in this document.

The Project In charge shall be responsible for overall operations at site and shall ensure that the work at site is progressing as per the requirements laid down under the various clauses in the contract.

The Project In charge shall have power to give notice to the contractor / to his representative of non-approval of any work or materials and such work shall be suspended or the use of such materials shall be discontinued until the decision of the Project In charge, but such examination shall not in any way exonerate the contractor from the obligation to remedy any defects which may be found to exist at any stage of the works or after the same is completed. Subject to the limitation of this clause the contractor shall take instructions only from the Client.

The contractor shall afford the Project In charge every facility and assistance for inspecting the works and materials and for checking and measuring work and materials.

Failure of the Project In charge to disapprove any work or materials shall not prejudice the power of the Project in charge thereafter to disapprove such work or materials and to order the pulling down, removal, or breaking up thereof.

The Project In charge is authorized to supervise, test, examine any materials and / or works, to order, cancel, alter, modify, any of the materials, items or works within the frame work of the contract, to approve / reject requests for modifications in works or schedule whether or not such orders, approvals, rejections, etc., involves increase or decrease in the costs or time.

The Project In charge is further authorized to check, correct, modify and certify or reject any bill or requests for payment for the

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materials, items or works. The Project in charge's decision in co-ordination with the Engineer shall be final and binding. The Project in charge reserves the right to obtain details of payment status of his vendors, contractors / subcontractors, workers if any connected to this project as and when required.

19.1

Employer and the Contractor are those mentioned as such in the Agreement and shall include their legal representatives, assigns or successors. They are treated throughout the Contract Document as if each were of the singular number and masculine gender.

19.2

The term "Sub-Contractor", as employed herein, includes those having a direct contract with the Contractor and it includes one who furnishes materials worked to a special design according to the plans or specifications of the Work but does not include one who merely furnishes materials, not so worked. Anyone doing work on a piece rate basis shall be deemed a Sub-Contractor.

The Contractor shall submit to the Client / Project In charge a list of Sub-Contractors (not less than three names for any individual discipline) for the approval of the Client / Project in charge. The Client / Project in charge may approve all or any of the names or may reject all of the names, which in its opinion do not meet the prerequisite qualifications. The Contractor shall re-submit a fresh list of names for approval. Further, in the event that none of the names submitted by the Contractor are acceptable to the Client / Project in charge, the Client / Project in charge may suggest names to contractor and the contractor shall appoint any of the suggested persons as he shall deem fit. The Contractor shall be responsible for the acts, defaults and neglects of any sub-contractor, his agents, servants or workmen as fully as if they were the acts, defaults or neglects of the contractor, his agents, servants or workmen.

The terms and conditions of the contract shall equally be applicable to the sub-contractors and it shall be the sole and exclusive responsibility of the contractor to ensure that they are complied within respect of the sub-contractor as well. In particular but without limitation, this shall apply to insurance and compliance with law.

The terms and conditions of the contract shall equally be applicable to the sub-contractors and it shall be the sole and exclusive responsibility of the contractor to ensure that they are complied within respect of the sub-contractor as well. In particular but without limitation, this shall apply to insurance and compliance with law.

The contractor shall co-ordinate and shall be responsible for all aspects of his sub-contractor's work including but not limited to scheduling, delivery, storage, installation, safety at site, testing, commissioning and handing over.

19.3

"Written Notice" shall be deemed to have been duly served if delivered in person to the individual or to a member of the firm or to an office of the Corporation for whom it is intended or if delivered at or sent by registered mail to the last business address known to him who gives the notice.

19.4

"Clerk of works / Engineering in Charge" shall mean the person appointed by Employer to inspect and certify measurements of the Works at Site.

19.5

All time limits stated in Contract Document are of the essence of Contract.

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The law of the place of work shall govern the construction under this contract.

19.6

The "Date of Virtual Completion" of the Work or specified portion of the Work is the date when construction is sufficiently completed, in accordance with the Contract Documents as modified by any change or variation order agreed to by the parties, so that EMPLOYER / Engineer In Charge can take over such completed work and occupy for the use it was intended.

The contract documents shall consist of the various documents listed under Clause 19.7 herein below.

19.7 CONTRACT DOCUMENTS

The following documents shall constitute the Contract Documents:

- 19.7.0 Articles of Agreement (executed by Employer and the Contractor).
- 19.7.1 Notice inviting Tender.
- 19.7.2 Additional Instructions covering Green building Guidelines to tenderers and Instructions to tenderers.
- 19.7.3 Form of Tender (submitted by the Contractor).
- 19.7.4 General Conditions of Contract.
- 19.7.5 General specifications.
- 19.7.6 Common specifications.
- 19.7.7 Detailed specifications for Structural & Civil finishes works.
- 19.7.8 Drawings submitted with the tender in terms of Clause 2.5 of the Tender Notice.
- 19.7.9 Contract Bills / Running account bills (RA Bills) – (including all modifications thereof incorporated before execution of the Agreement) and final certificate of Architect.
- 19.7.10 Letters for expressions of interest accompanying the tender.
- 19.7.11 Correspondences (if any) between the parties hereto after submission of tender and Employer's Letter of Acceptance of the Tender.
- 19.7.12 Letter of acceptance of the tender (or Work Order) issued to the Contractor by Employer.
- 19.7.13 Further drawings and / or instructions issued by the Architect and Employer from time to time relating to the Works.
- 19.7.14 Samples, Shop Drawings and Progress Charts referred to in Clauses 19.24 and 4 herein below.
- 19.7.15 Abbreviations and definitions.
- 19.7.16 List of Further drawings by way of Good for construction drawings to be issued by the Architects at a later date and / or instructions issued by the Architect and EMPLOYER / Engineer In Charge from time to time relating to the Works. List of final Structural drawings by way of Good for construction drawings, including the detailing of reinforcement steel to be prepared by the Tenderer and submitted for proof reading.
- 19.7.17 Measurement sheets for Sub Structure works prepared by Contractor for verification by EMPLOYER / Engineer In Charge.
- 19.7.18 The Pre-bid meeting related clarifications issued by Employer / Engineering in Charge and Architects duly signed and

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accepted by the Contractor.

19.7.19 Certificates of various registrations of Contractor to be furnished at a later date.

19.7.20 Soil Report – Geotechnical investigations report for the Building construction site.

19.7.21 The approvals obtained by Employer from various authorities for the project site.

19.8

The Contract Document is complementary to each other, any obligation cast on the Contractor in one document but is inadvertently omitted in another document does not result in releasing the Contractor of its obligation to comply with such omitted provision.

19.9

The original Contract Document shall remain in the custody of Employer so as to be available at all reasonable times for the inspection of the EMPLOYER or of Contractor. Immediately after execution of the Contract Agreement, one copy of Contract Document shall (without charge) be supplied to Contractor.

19.10

So soon as is possible after the execution of this Contract, two copies of the Specifications, Drawings, Descriptive Schedules or other like documents necessary for use in carrying out the Work shall (without charge) be supplied to the Contractor. Provided that nothing contained in the said Specifications, Descriptive Schedules or other documents shall impose any obligation beyond those imposed by the Contract Document namely, the Contract Drawing, the Contract Bills, the Articles of Agreement and this General Conditions of Contract.

19.11

After the award of the Contract, the Contractor (without charge) shall be supplied two copies of all such further drawings and details as may be prepared by the Architect / Employer from time to time as the Work proceeds as are reasonably necessary either to explain or amplify the Contract Drawings or to enable the Contractor to carry out and complete the Work in accordance with this General Conditions of Contract. Provided all such drawings and details shall be a reasonable development of the Work described in the Contract Document.

19.12

The Contractor shall keep upon the Site one copy of the Specifications, Drawings, Descriptive Schedules or other like document referred to in Clauses 19.10 and 19.11 above, and written instructions referred to in Clauses 19.20, 19.27.1 and 19.41 herein below so as to be available to the Architect / Employer or his representative/s at all reasonable times.

19.13

None of the documents hereinbefore mentioned shall be used by the Contractor for any purpose other than this Contract.

19.14

Towards the issue of Final Certificate under Clause 19.42.7 herein below, the Contractor shall if so requested by the Architect forthwith return to the Architect all Drawings, Details, Specifications, Descriptive Schedules and other documents of like nature which bears his name.

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19.15 TYPE OF CONTRACT

The Contract shall be an item-rate contract. The Contractor shall be paid as per the payment terms in Contract Documents.

19.16 SCHEDULE OF QUANTITIES / CONTRACT BILLS

- 19.16.0 The quantities given in the Schedule of Quantities are provisional and are meant to indicate the intent of the work and to provide a uniform basis for tendering. The Architect and Employer, reserves the right to increase or decrease any of the quantities or to totally omit any item of work and the Contractor shall not claim any extra or damages on these grounds.
- 19.16.1 The quality and quantity of work included in the Contract Sum shall be deemed to be that which is set out in the Contract Bills which bills, unless otherwise expressly stated in respect of any specified item, shall be deemed to have been prepared in accordance with the principles of the Standard Method of Measurement of Building Works last before issued by the Indian Standard Institution but save as aforesaid nothing contained in the Contract Bills shall override, modify or affect in anyway whatsoever the application or interpretation of that which is contained in any of the clauses of this General Conditions of Contract.
- 19.16.2 Any error in description or in quantity or omission of items from the Contract Bills shall not vitiate this Contract but shall be treated as a variation under Clause 19.41 herein below.
- 19.16.3 Employer reserves the right to delete any item of work prior to commencement of such item of work after giving sufficient notice and Contractor shall have no claim on deletion of such items of work.

19.17 CONTRACT DRAWINGS, CONSTRUCTION DRAWINGS AND AS BUILT DRAWINGS

- 19.17.0 In general, the Drawings shall indicate dimensions, positions and type of construction; the Specifications shall indicate the qualities and the methods; and the Bill of Quantities shall indicate the quantum and the rate for each item of work. Any work indicated on the Drawings but not mentioned in the Specification or vice-versa shall be furnished as though fully set forth in both. Work not specifically detailed, called for, marked or specified shall be the same as similar parts that are detailed, marked or specified.
- 19.17.1 The Contractor's work shall not deviate from the Drawings and the Specifications. The Architect's interpretation of these documents shall be final and without appeal.
- 19.17.2 Errors or inconsistencies discovered by the Contractor in the Drawings and Specifications shall be promptly brought to the attention of the Architect, through the Clerk of works / EMPLOYER, for interpretation or correction. The order of preference of documents to be followed in case of discrepancy is GFC drawings and then specifications. Local conditions which may affect the Work shall likewise be brought to the Architect's attention. If at any time, it is discovered that Work is being done which is not in accordance with the Contract Drawings and Specifications, the Contractor shall correct the work immediately at its own cost. Corrections of defective work shall not be a basis for any claim for extension of time. The Contractor shall not carry on work except with the knowledge of the Clerk-of-Works.
- 19.17.3 Figured dimensions on the Scale Drawings and large size details shall take precedence over small scale drawings. Any work done before receipt of such details, if not in accordance with the same, shall be removed and replaced or adjusted by the Contractor at his own expense to the satisfaction of the Architect / Employer. This General Condition

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shall apply with equal force to all the Work including authorized extra works.

- 19.17.4 All drawings, Bill of Quantities and Specifications including copies thereof furnished to the Contractor are the property of the Architects and Employer. They shall not be used on any other work and shall be returned to the Architect or Employer on request upon completion or termination of Contract.
- 19.17.5 Steel requirement and / or bar bending schedules shall be given by the contractor to Employer / Architect / Engineering in Charge based on the drawings issued to them well in advance so as to procure steel, if necessary.
- 19.17.6 Project in charge / EMPLOYER / Engineer In Charge shall issue free of charge three (03) sets of Construction drawings, stamped "Good / Approved for construction" to the contractor. Additional copies as and when required shall be supplied by the architect and costs shall be reimbursed by the contractor.
- 19.17.7 The Project in charge may from time to time during the course of contract issue the contractor with revised Construction drawings and the contractor shall ensure that all superseded drawings are removed from site and stored in a lockable cabinet as directed by the Project in charge and replaced by revised "Good for Construction" drawings.
- 19.17.8 The contractor shall ensure that a complete up to date register of drawing is maintained at site. All Construction drawings shall be properly filed and indexed for ready reference.
- 19.17.9 The contractor shall ensure that only the valid up to date Construction drawings are used for preparation of bar bending schedule, shop, Fabrication drawings, setting-out, construction etc.
- 19.17.10 As-built drawings shall be under preparation from the onset of the contract, in order that all minor amendments and discrepancies from the "Construction, Shop and Fabrication drawings" are incorporated. To ensure that this requirement is complied with, the Project in charge shall check the drawings on his request as the works proceed. 4 laminated sets of as-built drawings and one soft copy on a CD shall be submitted by the contractor. One shall be transparent and others shall be laminated prints.
- 19.17.11 At the discretion of the Project in charge and subject only to his agreement, certain Construction, Shop and Fabrication drawings may be modified and submitted to the Client as the "As-built drawings".

19.18 CONTRACT SUM

The Contract Sum shall not be adjusted or altered in any way whatsoever otherwise than in accordance with the express provisions of this General Conditions of Contract, and subject to Clause 19.17.1 above, any error (whether of arithmetic or otherwise) in the computation of the Contract Sum shall be deemed to have been accepted by the parties to the Contract Documents.

The Contract sum for the Letter of Award to the selected contractor will be initially based on the probable quantities and finally agreed rates for the schedule of quantities submitted by the Contractor with the Tender.

Employer reserves the right to revise the Contract sum under the following circumstances:

- 19.18.0 When there is change in quantities arising due to Good for Construction drawings released by the Architects;
- 19.18.1 When the work on substructure is completed and actual quantities are known;
- 19.18.2 When the works for the project are complete and Final bill prepared based on actual measurements, duly verified by Engineering in charge and approved by Architect and Employer.

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19.19 SCOPE AND INTENT

19.19.0 SCOPE

The general character and the scope of the Work is illustrated and defined by the signed Drawings, the Specifications and the Bill of Quantities hereto annexed. If the Contractor shall find any discrepancy in or divergence between the Contract Drawings, Specifications and / or the Contract Bills, he shall immediately give to the Architects / Employer a written notice specifying discrepancy or divergence and the Architects / Employer shall issue instructions in regard thereto.

19.19.1 EXTENT

The Contractor shall carry out and complete the Work in every respect in accordance with this Contract and with the directions of and to the reasonable satisfaction of Employer / Architect. The Architect may, in his absolute discretion and from time to time, issue further drawings, details and / or written instructions, written directions and written explanations all of which are collectively referred to as Architect's Instructions. All such Drawings and Instructions shall be consistent with Contract Document, true developments thereof and reasonably inferable there from.

19.19.2 INTENT

The intention of the Document is to include all labour and materials, equipment and transportation necessary for the proper execution of Work. Materials of work described in words, which so applied have a well-known technical / trade meaning, shall be held to refer to such recognized standard.

19.20 EMPLOYER / ENGINEER IN CHARGE INSTRUCTIONS

19.20.0 The Contractor shall forthwith comply with and duly execute any such works comprised in such instructions issued to him by the EMPLOYER / Engineer In Charge in regard to any matter in respect of which the EMPLOYER / Engineer In Charge is expressly empowered by these Conditions to issue instructions. Provided always that verbal instructions, directions and explanations given to the Contractor (or his work representative) by the EMPLOYER / Engineer In Charge shall if involving a variation be confirmed in writing. If within seven days after receipt of a written notice from the EMPLOYER / Engineer In Charge, requiring compliance with an instruction the Contractor does not comply herewith, then the Employer may employ and pay other persons to execute any work whatsoever which may be necessary to give effect to such instructions and all cost incurred with such employment shall be recoverable from the Contractor by Employer as a debt or may be deducted by him from any moneys due or to become due to the Contractor under this Contract.

19.20.1 Upon receipt of what purports to be instruction issued to him by the EMPLOYER / Engineer In Charge, the Contractor may request the EMPLOYER / Engineer In Charge to specify in writing the provision of these conditions which empowers the issue of the said instruction. The EMPLOYER / Engineer In Charge shall forthwith comply with any such request, and if the Contractor shall thereafter comply with the said instruction, then the issue of the same shall be deemed for all purposes of this Contract to have been empowered by the provision of these Conditions specified by the EMPLOYER / Engineer In Charge in answer to the Contractor's request.

19.20.2 All instructions issued by the EMPLOYER / Engineer In Charge shall be in writing with copy to Employer. Any instruction issued orally shall be of immediate effect, but shall be confirmed in writing by the Contractor to the EMPLOYER / Engineer In Charge within seven days, and if not dissented from in writing by the EMPLOYER /

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Engineer In Charge to the Contractor within seven days from receipt of the Contractor's confirmation shall take effect as from the expiration of the latter said seven days.

Provided always:

- 19.20.2.0 That if the EMPLOYER / Engineer In Charge within seven days of giving such an oral instruction shall himself confirm the same in writing, then the Contractor shall not be obliged to confirm as aforesaid, and the said instruction shall take effect as from the date of the EMPLOYER / Engineer In Charge confirmation and
- 19.20.2.1 That if neither the Contractor nor the EMPLOYER / Engineer In Charge shall confirm such an oral instruction in the manner and at the time aforesaid but the Contractor shall nevertheless comply with the same, then the EMPLOYER / Engineer In Charge may confirm the same in writing at any time prior to the issue of the Final Certificate, and the said instruction shall thereupon be deemed to have taken effect on the date on which it was issued.
- 19.20.2.2 Clerk of works / Engineering in Charge shall maintain a log of all verbal instructions and changes issued at site.

19.21 FACILITIES AND CO-OPERATION

- 19.21.0 In the case of works indicated on the Drawings but not included in the contract the Contractor shall provide necessary facilities and co-operation for any Sub- Contractor or supplier who may be approved by Employer. The Contractor shall do all cutting, filling or patching of his work that may be required to make its several parts come together properly and fit it to receive or be received by work of other contractors shown upon or reasonably implied by the Drawings and Specifications for the completed structure, and he shall make good all such cutting, filling or patching after completion of the works of other contractors as the Architect may direct. Any cost caused by the defective or ill-timed work shall be borne by party responsible therefore.
- 19.21.1 The Contractor shall not endanger any work by cutting, excavating or otherwise altering the work and shall not cut or alter the work of any other contractor save with the consent of the Architect and Employer.

19.22 SETTING OUT

- 19.22.0 The Architect shall determine any lines, levels, etc. which may be required for the execution of the Work and shall furnish to the Contractor by way of accurately dimensioned drawings such information as shall enable the Contractor to set out the Work at ground level.
- 19.22.1 The Contractor shall set out and level the Work and shall be responsible for the accuracy of the same. He shall provide all the instruments and attendance required by the Architect/Employer for checking the Work. He shall entirely at his own cost amend to satisfaction of Architect/Employer any error found at any stage which may arise through inaccurate setting.

19.23 SITE VISIT

Before tendering, the Contractor shall have visited and examined the Site and satisfied himself as to the nature of the existing roads or other means of communication and the character of the soil and of the excavations, the correct dimensions of the Work and the facilities for obtaining any special articles called for in the Contract Document and shall have obtained generally his own

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information on all matters affecting the commencement, continuation and progress of the Works. No extra charge made in consequence of any misunderstanding or incorrect information of any of these points, or on the grounds of insufficient description, will be allowed. Should the Contractor after visiting the Site, find any discrepancies, omissions, ambiguities or conflicts in or among the Contract Document, or to be in doubt as to their meaning, he shall bring the questions to the Architect's attention, not later than seven days before last date for submission of tender and obtain all necessary clarifications thereto.

19.23.0 LEAVE AND LICENSE

The Contractor shall be allowed to enter the Site on the "Date of Commencement" stated in the Appendix hereto and he shall thereupon and forthwith begin the Work and shall regularly proceed with and complete the same on or before the "Date of Completion" stated in the Appendix hereto subject nevertheless to the provision for extension of time hereinafter contained.

19.23.1 PRESERVATION AND CONSERVATION MEASURES

- 19.23.1.0 Existing drains, pipes, cables, over-head wires, sewer lines, water lines and similar services, if any, encountered in the course of the execution of work shall be protected against the damage by the contractor at his own expense. In case the same are to be removed and diverted, expenditure incurred in doing so shall be payable to the contractor. The contractor shall work out the cost, get the same approved by Engineer in-Charge before taking up actual execution. The contractor shall not store materials or otherwise occupy any part of the site in a manner likely to hinder the operation of such services.
- 19.23.1.1 All fossils, coins, articles of value of antiquity, structures and other remains or things of geological or archaeological interest discovered on project location during excavation/construction shall be the property of the Employer, and to be handed over. The contractor will take reasonable precaution to prevent his work men or any other persons from removing and damaging any such article or thing. He will, immediately upon discovery thereof and before removal acquaint the EMPLOYER / Engineer-in-charge of such discovery and carry out the official instructions of Engineer-in-charge for dealing with the same, till then all work shall be carried out in a way so as not to disturb/damage such article or thing.

19.24 SAMPLES AND SHOP DRAWINGS

- 19.24.0 After the award of the Contract, the Contractor shall furnish to the Clerk of works/EMPLOYER for the approval of the Architect, with such promptness as to cause no delay in his work or in that of any other Sub-Contractor, samples and shop drawings required by the specifications or by the Architect/Employer. Samples shall be delivered free of cost.
- 19.24.1 A schedule giving dates for the submission of samples shall be included in the schedule described under Clause 19.25 herein below. Unless specifically authorized, all samples must be submitted for approval within thirty days before the date the particular work involved is scheduled to begin.
- 19.24.2 The Architect shall check and approve such samples, with reasonable promptness only for conformity with the design concept of the Works and for compliance with the information in the Contract Documents. The Work shall be in accordance with the approved samples.

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- 19.24.3 Shop, Fabrication drawings shall mean any or all drawings, required for satisfactory execution of the work, in addition to the Construction drawings for woodwork, metal work, false work, bar bending schedules etc., as required by the Project in charge.
- 19.24.4 The contractor shall be entirely responsible for co-ordination of entire work at site including the work carried out by sub-contractors and shall ensure that all necessary Shop, Fabrication drawings are properly prepared by the contractor and are submitted to the Project in charge for approval in sufficient time so as not to cause any delay in the expeditious execution of the works as per the program. Such approval shall not absolve the contractor from his responsibility.
- 19.24.5 Shop, Fabrication drawings to be prepared by the contractor and his sub-contractor shall be such that all details are included as required by the Project in charge at an appropriate scale to ensure that the works are properly executed, co-ordinate, fabricated and installed in accordance with Construction drawings and specifications.
- 19.24.6 The contractor shall make a general check of all physical sizes and details of plant and equipment required and/or specified for the project and shall inform the Project in charge of any matter that may come to his notice with which he disagrees. Any comments by the contractor on the difficulty in incorporating the plant, materials and equipment in the project and the time required for the completion of the work shall be made to the Project in charge.

19.25 PROGRAMME CHART / PROGRESS REPORTS

The Contractor shall prepare programme charts and submit the same for approval of Architect and Employer and for his record within ten days of award of Contract

The charts shall indicate the "expected dates" of commencement and completion of each of the items of the Work and shall be in a form approved by the Architect or Employer. The charts shall also indicate the scheduling of samples, shop drawings and the approvals. The charts as approved by the Architect and Employer will form part of the Contract Documents.

Contractor shall submit a Cash Flow Chart within seven days of award of the contract for scrutiny/approval of Employer.

Progressive update on the cash flow shall be submitted by 20th day of every month to Employer.

19.26 ACCESS FOR ARCHITECT/EMPLOYER TO THE WORKS

The Architect/Employer and or their respective representatives shall at all reasonable times have access to the Works and to workshops or other places of the Contractor where Work is being prepared for Contract and when Work is to be so prepared in workshops or other places of a Sub- Contractor (whether or not a nominated Sub-Contractor as defined in Clause 19.37 herein below), the Contractor shall have a term in the Sub-Contract so as to secure a similar right of access to those workshops or places for the Architect/Employer and his representatives and shall do all things reasonably necessary to make such right effective.

19.27 ARCHITECT'S STATUS AND DECISIONS

- 19.27.0 The Architect along with the EMPLOYER shall be Employer's representative during the construction period. In addition to the obligation agreed to be complied with by the Architect under the agreement signed by the Architect with Employer, the Architect shall periodically visit the site to familiarize himself generally with the progress and the quality of the work and to determine in general if the Work is proceeding in accordance with the Contract Document.

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He shall not be required to make exhaustive or continuous onsite inspection to check the quantity of the work and he shall not be responsible for the Contractor's failure to carry out the construction work in accordance with the Contract Document. During such visits and on the basis of his observations while at the Site he shall keep Employer informed of the progress of the Work, shall endeavor to guard Employer against defects and deficiencies in the Work of the Contractor and he shall condemn work which fails to conform to the Contract Document. He shall have authority to act on behalf of Employer only to the extent expressly provided in the Contract Document or otherwise in writing which shall be shown to the Contractor. He shall have authority to stop the Work, whenever such stoppage may be necessary in his reasonable opinion to ensure proper execution of the Contract. The Architect shall be in the first instance the interpreter of the Conditions of this Contract and the judge of its performance. In case of the termination of the appointment of Architect, Employer shall appoint a capable and reputable Architect against whom the Contractor shall make no reasonable objection and whose status under the Contract shall be that of the former Architect. Any dispute in connection with such appointment shall be subject to Arbitration.

19.27.1 DECISION

The Employer shall within a reasonable time make decisions on all claims of Employer or the Contractor and all other matters relating to the execution and progress of the Work or the interpretation of the Contract Document. With the approval of Employer / Architects / Engineer In Charge may in his absolute discretion and from time to time issue further drawings, details and/or written instructions, written directions and written explanations in regard to:

- 19.27.1.0 Variation or modifications of the design.
- 19.27.1.1 Quality or quantity of works or the additions or omission or substitution of any work.
- 19.27.1.2 Any discrepancy in or divergence between the Drawings and/or specifications.
- 19.27.1.3 Removal and/or re-examination of any works executed by the Contractor
- 19.27.1.4 Dismissal from the Works of any persons employed thereon.
- 19.27.1.5 Opening up for inspection of any work covered up.
- 19.27.1.6 Amending & making good of any defects under Defects Liability Period.
- 19.27.1.7 Removal from the Site of any materials brought thereon by the Contractor and the substitution of any other material therefore.
- 19.27.1.8 Assignment and sub-letting.
- 19.27.1.9 Delay and extension time.
- 19.27.1.10 Postponement of any work to be executed under the provision of this Contract.

19.27.2 DISMISSAL

The Contractor shall on the request of Employer /Engineering in Charge immediately dismiss from the Works any person employed thereon by him who may in the opinion of Employer/Engineering in charge be incompetent or mis-conducts himself and such person shall not be again employed on the Work without the permission of Employer/ Engineering in charge.

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19.29 CLERK OF WORKS/EMPLOYER

- 19.29.0 The Contractor shall afford the Clerk of works/EMPLOYER every facility and assistance for inspecting the Works and materials and for checking and measuring time and materials. Neither the Clerk of works/EMPLOYER nor any representative from the Architect shall have power to set out Works or to revoke, alter, enlarge or relax any requirements of the Contract or to sanction any day work, additions, alterations, deviations or omissions, or any extra work whatever except in so far as such authority may be specially conferred by a written order of Clerk of works / Engineer In Charge /Employer.
- 19.29.1 The Clerk of works/EMPLOYER or any representative from the Architect shall have authority to give notice to the Contractor or to his representative of non-approval of any work or materials and such work shall be suspended or the use of such materials shall be discontinued until the decision of the Engineer In Charge /Architect is obtained. The Works will from time to time be examined by the, the Clerk of works/EMPLOYER or the Architect's representative but such examination shall not in any way exonerate the Contractor from the obligation to remedy any defects which may be found to exist at any stage of the Works or after the same is completed. Subject to the limitation of this clause the Contractor shall take instructions only from the Clerk of works / Engineer In Charge / Architect/Employer.

19.30 CONTRACTOR'S FIELD ORGANISATION AND EQUIPMENT

19.30.0 WORKS MANAGER

The Contractor shall constantly keep on his Work during its progress one qualified and competent Works Manager acceptable to Employer/ Architects / Engineer In Charge (assisted by a team of Engineers, Supervisors and Technicians) who will be responsible for the carrying out of the Works to the true meaning of Drawings, Specifications, and Architect's representative / EMPLOYER / Engineer In Charge instructions and directions, to the satisfaction of the EMPLOYER / Engineer In Charge / Architect representative /Employer. On onward of the contract, Contractor shall also submit an organization chart indicating the staff being assigned for the project. Any directions or instructions given to him (or to his assistants) by the EMPLOYER /Architect representative /Employer shall be deemed to have been issued to the Contractor. Attention of the Contractor is called to the importance of requesting instructions from the EMPLOYER / Engineer In Charge /Architect representative before undertaking any work where Architect's directions or instructions are required. Any such work done in advance of such instructions will be liable to be removed.

If the Contractor's Supervisor and Technical Staff are found to be deficient in the opinion of Employer, then Employer reserves the right to appoint/depute Technical and Supervisory Staff to complete the work as per the contract. The expenditure so incurred (with individual administrative expenses) shall be debited from the amounts payable to the Contractor.

19.30.1 EQUIPMENT

The Contractor shall provide and install all necessary barricades, hoists, ladders, staging, scaffoldings, tools, tackles, plants, instruments, equipment etc. and all transport for labour, materials and plant necessary for the proper carrying on execution, completion and maintenance of the Work to the satisfaction of the Architect/Employer.

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19.30.2 SECURITY

The Contractor shall make his own security arrangements to guard the Site and Works at all times, at his own expense. The security arrangements shall be adequate to maintain strict control on the movement of material and labour. The Contractor shall extend the security arrangements to guard the materials stored and/or fixed on the premises by the Sub-contractors.

19.30.3 STORAGE OF MATERIALS

The Contractor shall provide, erect, maintain and remove after completion of the Works, proper temporary sheds for the storage and protection of the materials etc. and also for the execution of Work which may be prepared on the Site.

19.30.4 SANITARY CONVENIENCES

The Contractor shall provide and erect all necessary temporary sanitary conveniences for the site staff and the workmen maintain in a clean orderly condition, clear away and deodorize the ground after removal.

19.30.5 SCAFFOLDING, STAGING, GUARDRAILS, ETC.

The Contractor shall provide all necessary temporary scaffoldings, staging, platforms, guardrails, stairs etc. (with sufficiently strong and adequate supports suitable for particular situations) which shall be required during construction. The temporary access to the various parts of the Works shall be rigid and strong enough to avoid any chance of mishaps. The arrangement proposed shall be subject to the approval of Employer/Architect/Engineering in charge.

19.30.6 LABOUR CAMP / TEMPORARY WORKS AND ARRANGEMENTS

The selected Contractor will have to look out for a location outside the premises to put up labour camp. Contractor to make arrangements for cordoning off the area, make sanitary and water supply arrangement. On completion of the work, he shall dismantle the temporary structures and clear off the site.

The contractor shall furnish to the Project in charge full particulars, drawings, design etc., of all temporary works necessary for the execution of the works and shall allow sufficient time for the Project in charge to consider the same. The Project in charge reserves the right to comment/alter on the contractor's proposals if he considers that modifications should be made. The contractor shall be solely responsible for the stability and safety of all temporary works and unfinished permanent works resulting from the arrangements eventually adopted for their execution.

19.31 TAXES

Unless otherwise specified the contractor shall include GST. However the amount of GST should be show separately in the Abstract. There shall be no extra on any account. The sum payable shall be calculated on the basis of the unit prices specified in the contract and of the work actually executed.

19.32 STATUTORY OBLIGATIONS, NOTICES, FEES AND CHARGES

19.32.0 The Contractor shall comply with and give all notices required by any Government authority, and instrument, rule or order made under any Act of Parliament or any regulation or bye-law of any local authority relating to the Work or with whose system the same is or will be connected. The Contractor, before making any variation from the Contract

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Drawings or Contract Bills necessitated by such compliance, shall give to EMPLOYER / Engineer In Charge a written notice specifying and giving reasons for such variations and EMPLOYER / Engineer In Charge may issue instructions in regard thereto and such instructions are binding on the Contractor. If within 10 days of having given the said written notice, the Contractor does not receive any instruction in regard to the matters therein specified, he shall proceed with the Work conforming to the Act of Parliament, instrument, rule, order, regulations or bye-law in question and any variation thereby necessitated shall be deemed to be a variation required by EMPLOYER / Engineer In Charge

- 19.32.1 The Contractor shall pay and indemnify Employer against liability in respect of any fees or charges (including any rates and taxes) legally demandable under any Act of Parliament, instrument, rule or order or any regulation or bye-law or any local authority in respect of the Work.

19.33 ROYALTIES AND PATENT RIGHTS

All royalties or other sums payable in respect of the supply and use in carrying out the Work as desired by or referred to in the Contract Bills of any patented articles, process or inventions shall be deemed to have been included in the Contract Value, and the Contractor shall indemnify Employer from and against all claims, proceedings, damages, costs and expenses which may be brought or made against Employer or to which he may be put by reason of the Contractor infringing or being held to have infringed any patent rights in relation to any such articles, processes and inventions.

19.34 LICENSES & PERMITS FOR MATERIALS UNDER GOVT CONTROL

Licenses and Permits for all materials under Government control shall be obtained by the Contractor through the collaboration and help of Employer. The Contractor shall include in his tender all transport charges, procurement charges and other expenses likely to be incurred to bring the materials to the Site.

19.35 WATER AND ELECTRICITY FOR CONSTRUCTION

Unless otherwise specified under clause 2.22 of notice inviting tender, the Contractor will make his own arrangements for the supply of Water and Electricity required for the works.

19.36 ASSIGNMENT AND CHANGE OF CONTROL

The Contractor shall without the written consent of EMPLOYER / Engineer In Charge neither take any steps to change the ownership or management control of the Contractor company nor shall assign this Contract, and shall not without the written consent of EMPLOYER / Engineer In Charge and EMPLOYER (which consent shall not be unreasonably withheld to the prejudice of the Contractor) sub-contract any portion of the Work. However, the Contractor shall continue to be liable to EMPLOYER / Engineer In Charge for all acts and/or omissions of the Sub-Contractor and/or timely delivery of the deliverables. For the purpose of this clause; "management control" means the power to direct the management and policies of the entity whether through the ownership of voting capital, by contract or otherwise and "ownership" means the holding a minimum of 51% voting capital of the entity.

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19.37 SUB-CONTRACTOR

Before awarding any Sub- Contract, the Contractor shall notify Employer/ Architects / Engineer In Charge in writing the names of the Sub- Contractors proposed for the principal parts of the Work and for such other parts as Employer/Architects may direct, and shall not employ any to whom EMPLOYER / Engineer In Charge may have reasonable objection and the Contractor will have to obtain an undertaking for such Sub Contractor that they shall adhere to all the terms and conditions stipulated in the Contract Documents. EMPLOYER / Engineer In Charge / Architects, however, shall have power to obtain estimate and select other agencies to carry out any of the Work as described below:

- 19.37.0 All specialists, merchants, tradesmen and others executing any works or supplying and fixing any goods, which may be nominated or selected by EMPLOYER / Engineer In Charge shall be deemed to be Sub- Contractors employed by the Contractor and are to be referred as nominated Sub- Contractors. No nominated Sub- Contractor shall be employed on or in connection with the Work against whom the Contractor shall make reasonable objection or (save where EMPLOYER / Engineer In Charge and Contractor shall otherwise agree) who will not enter into a contract providing:
- 19.37.0.0 That the nominated Sub- Contractor shall carry out and complete the sub-contract works in every respect to the reasonable satisfaction of the Contractor and of EMPLOYER / Engineer In Charge and in conformity with all the reasonable directions and requirements of the Contractor.
- 19.37.0.1 That the nominated Sub- Contractor shall observe, perform and comply with all the provisions of this Contract on the part of the Contractor to be observed performed and complied with (other than Clause 19.58 herein below) so far as they relate and apply to the sub-contract works or to any portion of the same.
- 19.37.0.2 That the nominated Sub- Contractor shall indemnify the Contractor against the same liabilities in respect of the sub-contract work as those for which the Contractor is liable to indemnify Employer under this Contract.
- 19.37.0.3 That the nominated Sub- Contractor shall indemnify the Contractor against claims in respect of any negligence, omission or default of such Sub- Contractor, his servants or agents or any misuse by him or them of any scaffolding or other plant, and shall insure himself against any such claims and produce the policy or policies and premium receipts as and when required by the Contractor or Architect.
- 19.37.0.4 That Employer/Architect/Engineering in charge and his representative shall have right of access to workshops and other places of nominated Sub-contractor as mentioned in Clause 19.26 above.
- 19.37.0.5 That the sub-contract work shall be completed within the period or (where they are to be completed in sections) periods therein specified, that the Contractor shall not without the written consent of Employer and Architect/Engineering in charge grant any extension of time for the completion of the sub-contract work or any section thereof, and that the Contractor shall inform Employer and Architect/Engineering in charge of any representations made by the nominated Sub- Contractor as to the cause of any delay in the progress of completion of the sub-contract work or of any section thereof.
- 19.37.0.6 That if the nominated Sub- Contractor shall fail to complete the sub-contract work or (where the sub-contract works are to be completed in sections) any section thereof within the period therein specified or within any extended time granted by the Contractor with the written consent of Employer and Architect/Engineering in charge, and the Architect and Employer jointly certify in writing to the Contractor that the same ought reasonably so to have

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been completed the nominated Sub-Contractor shall pay or allow to the Contractor either a sum calculated at the rate therein agreed as Liquidated and Ascertained Damages for the period during which the said work or any section thereof, as the case may be, shall so remain or have remained incomplete or (where no such rate is therein agreed) a sum equivalent to any loss or damage suffered or incurred by the Contractor and caused by the failure of the nominated Sub-Contractor as aforesaid.

- 19.37.0.7 That the Contractor shall retain from the sum directed by the EMPLOYER / Engineer In Charge having been included in the calculation of the amount stated as due in any certificate issued under Clause 19.42 herein below in respect of the total value of work, materials or goods executed or supplied by the nominated Sub-Contractor the percentage of such value named in the Appendix hereto as "Retention Percentage" upto a total amount not exceeding a sum which bears the same ratio to the sub-contract price as the unreduced sum named in Appendix hereto as "Limit of Retention Fund" bears to the Contract sum; and that Contractor's interest in any sums so retained (by whomsoever held) shall be fiduciary as trustee for nominated Sub-Contractor (but without obligation to invest); that the nominated Sub-contractor's beneficial interest in such sums shall be subject only to the right of the Contractor to have recourse thereto from time to time for payment of any amount which he is entitled under the Sub-Contract to deduct from any sum due or to become due to the nominated Sub-Contractor; and that if and when such sums or any part thereof are released to the nominated Sub- Contractor they shall be paid in full if paid within fourteen days of the date fixed for their release in the sub-contract.
- 19.37.1 Before issuing any certificate under Clause 19.42 herein below, the EMPLOYER / Engineer In Charge may request the Contractor to furnish to him reasonable proof that all amounts included in the calculation of the amount stated as due on previous certificates in respect of the total value of work materials or goods executed or supplied by any nominated Sub-Contractor have been duly discharged and if the Contractor fails to comply with such request, the Architect shall issue a certificate to that effect and thereupon Employer may himself pay such amounts to any nominated Sub-Contractor concerned and deduct the same from any sums due or to become due to the Contractor.
- 19.37.2 The Contractor shall not grant to any nominated Sub- Contractor any extension for the period within which the sub-contract work or (where the sub-contract works are to be completed in sections) any section thereof is to be completed without the written consent of Employer / Architects / Engineer In Charge. Provided always that the Contractor shall inform Employer and Architects / Engineer In Charge of any representation made by the nominated Sub-Contractor as to the cause of any delay in the progress or completion of the sub-contract work or any section thereof and that consent of Employer or EMPLOYER / Engineer In Charge shall not be unreasonably withheld.
- 19.37.3 If any nominated Sub-Contractor fails to complete the sub-contract work or (where the sub-contract works are to be completed in sections) any section thereof within the period specified in the sub-contract or within the extended time granted by the Contractor with the written consent of Employer / Architects / Engineer In Charge then if the same ought reasonably so to have been completed the EMPLOYER / Engineer In Charge shall certify in writing accordingly. Any such certificates shall be issued to the Contractor and immediately upon issue the EMPLOYER / Engineer In Charge shall send a duplicate copy thereof to the nominated Sub-Contractor.
- 19.37.4 If Employer and Engineer In Charge / Architects desires to secure final payment to any nominated Sub-Contractor before final payment is due to the Contractor, and if such Sub- Contractor has satisfactorily indemnified the Contractor against any latent defects then the EMPLOYER / Engineer In Charge may in an Interim Certificate

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include an amount to cover the said final payment and thereupon the Contractor shall pay such nominated Sub-Contractor the amount so certified. Upon such final payment the amount named in Appendix hereto, as "Limit of Retention Fund" shall be reduced by the sum which bears the same ratio to the said amount as does such Sub-Contractor's sub-contract price to the Contract Sum, and save for latent defects the Contractor shall be discharged from all liability for the work materials or goods executed or supplied by such Sub-Contractor under the sub-contract to which the payment relates.

- 19.37.5 Neither the existence nor the exercise of the foregoing powers nor anything else contained in this General Conditions of Contract shall render Employer in any way liable to any nominated Sub-Contractor.
- 19.37.6 Where Contractor in the ordinary course of his business directly carried out works for which Prime Cost or Provisional Sums are included in the Contract Bills and Employer/ Engineer In Charge /Architects is prepared to receive tenders from other contractors for such items, then the Contractor shall be permitted to tender for the same or any of them but without prejudice to Employer's right to reject the lowest or any tender. If the Contractor's tender is accepted he shall not sublet the work without the consent in writing of Employer and Engineering in charge.
- 19.37.7 It shall be a condition of any tender accepted under Clause 19.37.6 above that Clause 19.41 herein below shall apply in respect of the Item Work included in the tender as if for the reference therein to the Contract Drawings and the Contract Bills there were references to the equivalent documents included in or referred to in the Tender.
- 19.37.8 The Contractor shall allow for general attendance upon Sub-Contractors including free use of plant, scaffolding etc. and is to allow them the use of sanitary convenience, facilities for storing materials, other amenities and affording them all reasonable facilities for carrying out their contracts.

19.38 PRIME COST

The following provisions shall apply where Prime Cost Sums are included in the Contract Bills or arises as a result of EMPLOYER / Engineer In Charge/Architects instructions given in regard to the expenditure of Provisional Sums in respect of any materials or goods to be fixed by the Contractor:

- 19.38.0 Such sums shall be understood to mean net cost to be defrayed as a Prime Cost after deducting any trade or other discount and shall exclude GST (where applicable) and other taxes, duties, levies and the cost of packing, carriage and delivery. Provided that where in opinion of EMPLOYER / Engineer In Charge, the contractor has incurred expense for special packing or special carriage such special expense shall be allowed as part of sums actually paid by Contractor.
- 19.38.1 Such sums shall be expended in favour of such persons as the EMPLOYER / Engineer In Charge shall instruct, and all specialists, merchants, tradesmen or others who are nominated by the EMPLOYER / Engineer In Charge to supply materials or goods are hereby declared to be the suppliers to the Contractor and are referred to in this General Conditions of Contract as "Nominated Suppliers" provided that EMPLOYER / Engineer In Charge shall not (save where EMPLOYER / Engineer In Charge and Contractor shall otherwise agree) nominate as a supplier a person who will not enter into a contract of sale which provides (inter-alia):
- 19.38.1.0 That the materials or goods to be supplied shall be to the reasonable satisfaction of the EMPLOYER / Engineer In Charge /Architects.

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- 19.38.1.1 That the Nominated Supplier shall make good by replacement or otherwise any defects in the materials or goods supplied which appear within such period as is therein mentioned and shall not bear any expenses reasonably incurred by Contractor as a direct consequence of such defects, provided that
- 19.38.1.1.0 Where the materials or goods have been used or fixed such defects are not such that examination by the Contractor ought to have revealed them before using or fixing.
- 19.38.1.1.1 Such defects are due solely to defective workmanship or material in the goods supplied and shall not have been caused by improper storage by the Contractor or misuse or by any act or neglect of either the Contractor, the Architect/Employer by any person or persons for whom they may be responsible.
- 19.38.1.2 That delivery of materials or goods supplied shall be commenced and completed at such times as the Contractor may reasonably direct.
- 19.38.2 All payments by the Contractor for materials or goods supplied by a Nominated Supplier shall be in full, and shall be paid within thirty days of the end of the month during which delivery is made.

19.39 TRADESMEN

The Contractor shall permit the execution of work not forming part of this Contract by tradesmen or others engaged by Employer. Every such person shall for the purposes of Clause 19.40 herein below be deemed to be a person for whom Employer is responsible and not be a Sub-Contractor.

19.40 SEPARATE CONTRACTS

Employer/Architects reserves the right to let other contracts in connection with his work under similar general conditions. The Contractor shall afford other contractors reasonable opportunity for the introduction and storage of their materials and the execution of their work, and shall properly connect and coordinate his work with theirs. If any part of the Contractor's or Sub-Contractor's work depends for proper execution or results upon the work of any other contractor or Sub-Contractor, the Contractor shall inspect and promptly report to the EMPLOYER / Engineer In Charge any defects in such work that render it unsuitable for such proper execution and results. Failure of the Contractor to so inspect and report shall constitute an acceptance of the other contractor's work as fit and proper for the reception of his Work, except as to defects which may develop in the other contractor's or Sub-Contractor's work after the execution of work. To ensure proper execution of his subsequent work, Contractor shall measure work already in place & shall at once report to EMPLOYER / Engineer In Charge any discrepancy between the executed work and Drawings.

19.41 VARIATIONS, PROVISIONAL AND PRIME COST SUMS

- 19.41.0 EMPLOYER / Engineer In Charge may issue instructions requiring a Variation and he may sanction in writing any Variation made by Contractor otherwise than pursuant to an instruction of EMPLOYER / Engineer In Charge and Architect. No Variation required by EMPLOYER / Engineer In Charge and Architects or subsequently sanctioned by him shall vitiate this Contract.
- 19.41.1 The term "Variation" as used in these Conditions means the alteration or modifications of the design, quality or quantity of the work as shown upon the Contract Drawings and desired by or referred to in the Contract Bills, and includes

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the addition, omission or substitution of any work, the alteration of the kind of standard of any of the materials or goods to be used in the Work, and the removal from the Site of any works, materials or goods executed or brought thereon by the Contractor for the purposes of Work other than work, materials or goods which are not in accordance with this Contract.

- 19.41.2 EMPLOYER / Engineer In Charge shall issue instructions in regard to the expenditure of Prime Cost and Provisional Sums included in the Contract Bills and of Prime Cost Sums which arise as a result of instructions issued in regard to expenditure of Provisional sum.
- 19.41.3 All Variations required by Employer and Architects / Engineer In Charge or subsequently sanctioned by him in writing and all work executed by the Contractor for which Provisional Sums are included in the Contract Bills (other than work for which a tender may under Clause 19.37.6 hereinabove has been accepted) shall be measured and recorded by the Contractor in the presence of the Clerk –of –Works and submitted to the EMPLOYER / Engineer In Charge who will value it after checking. The valuation of Variations and of work executed by the Contractor for which a Provisional Sum is included in the Contract Bills (other than work for which a tender has been accepted as aforesaid), unless otherwise agreed, shall be made in accordance with the following rules:
- 19.41.3.0 The price in the Contract Bills shall determine the valuation of work of similar character executed under similar conditions as work priced therein.
- 19.41.3.1 The said prices, where work is not of a similar character or executed under similar conditions as aforesaid, shall be the basis of prices for the same so far as may be reasonable, failing which a fair valuation thereof shall be made.
- 19.41.3.2 Where work cannot properly be measured and valued, the Contractor shall be allowed day– work rates on the prices prevailing when such work is carried out (unless otherwise provided in the Contract Bills):
- At the rates if any, inserted by the Contractor in the Contract Bills or
 - When no such rates have been inserted, at the rates prevailing in the market for material and labour and at the control rates for the controlled materials including in all cases the rate for delivery of the material at the Work.
- Provided that in any case voucher specifying the time daily spent upon the work (and if required by the Clerk of works/Engineering in charge the workmen's names) and the materials employed shall be delivered for verification to the EMPLOYER / Engineer In Charge or his authorised representative not later than the end of the week following that in which the work has been executed.
- 19.41.3.3 The prices in the Contract Bills shall determine the valuation of items omitted, provided that if omissions substantially vary the conditions under which remaining items of work are carried out, the prices for such remaining items shall be valued under Clause 19.41.3 herein above.
- 19.41.4 Effect shall be given to the measurement and valuation of Variations under Clause 19.41.3 herein above in Interim Certificates and by adjustment of the Contract sum; and effect shall be given to the measurement and valuation of work for which a Provisional Sum is included in the Contract Bills under the said Clause in Interim Certificate and by adjustment of the Contract Sum in accordance with Clause 19.42.6 herein below.
- 19.41.5 If upon written application being made to him by the Contractor, the EMPLOYER / Engineer In Charge is of the opinion that a Variation or the execution by the Contractor of work for which a Provisional Sum is included in the Contract Bills (other than work for which a tender made under Clause 19.37.6 above has been accepted) has involved the

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Contractor in direct loss and/or expense for which he would not be reimbursed by payment in respect of a valuation made in accordance with the rules contained in Clause 19.41.3 above and if the said application is made within a reasonable time of the loss or expense having been incurred then the EMPLOYER / Engineer In Charge shall ascertain the amount of such loss or expense. Any amount from time to time as ascertained shall be added to the Contract Sum, and if an Interim Certificate is issued after the date of ascertainment any such amount shall be added to the amount which would otherwise be stated as due in such certificate.

19.42 CERTIFICATES AND PAYMENTS

- 19.42.0 At the "Period of Interim Certificate" named in the Appendix hereto, the EMPLOYER shall issue a monthly certificate stating the amount due to the Contractor from Employer, and the Contractor be entitled to payment therefore within the "Period of Honouring Certificates" named in the Appendix hereto. Interim Certificates shall be made by the EMPLOYER / Engineer In Charge /Architects not more than once a month.
- 19.42.1 The amount stated as due in an Interim Certificate shall, subject to any agreement between the parties as to stage payments, be the total value of the Work properly executed and of the materials and goods (for materials as per Clause of Notice Inviting Tenders) delivered to or adjacent to the work for use thereon upto and including a date not more than seven days before the date of the said Certificate less any amount Employer is bound to make statutory deduction towards Income tax (T.D.S.) etc. less any amount which shall be retained by Employer (as provided in Clause 19.42.4 herein below) and less any instalments previously paid under these Conditions.
- 19.42.2 Employer shall retain the percentage of the total value of the work referred to in Clause 19.42.0 herein above, which is named in the Appendix hereto as "Retention Percentage" (Retention Percentage of 5%). Provided always that when the sum of the amounts so retained equals the amount named in said Appendix as "Limit of Retention Fund" or that amount as reduced in pursuance of Clause 19.37.0.7 above, as the case may be, no further amounts shall be retained by virtue of this Clause.
- 19.42.3 The amounts retained by virtue of Clause 19.42.2 above shall be subject to the following rules:
- 19.42.3.0 Employer's interest in any amounts so retained shall be fiduciary as trustee for the Contractor (but without obligation to invest), and the Contractor's beneficial interest therein shall be subject only to the right of Employer to have recourse thereto from time to time for payment of any amount which he is entitled under the provisions of this Contract to deduct from any sum due or to become due to the Contractor.
- 19.42.3.1 On the issue of the Certificate of Virtual Completion, the EMPLOYER / Engineer In Charge shall issue an Interim Certificate for one moiety of the total amounts then so retained and the Contractor shall be entitled to payment of the said moiety within the "Period of Honouring Certificate" named in the Appendix hereto.
- 19.42.4 The measurement and valuation of the Work shall be completed within the "Period of Final Measurement and Valuation" stated in the Appendix hereto and the Contractor shall be supplied with a copy of the priced Bills of Variation not later than the end of the said period and before the issue of the Final Certificate under Clause 19.42.7 herein below.
- 19.42.5 Either before or within a reasonable time after Virtual Completion of the Work, the Contractor shall send to the EMPLOYER / Engineer In Charge all documents necessary for purposes of computations required by Conditions including all documents relating to accounts of Nominated Sub-Contractors & Nominated Suppliers.

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- 19.42.6 In the settlement of accounts, the amounts paid or payable under the appropriate contracts by the Contractor to Nominated Sub-Contractors or Nominated Suppliers, the amounts paid or payable by virtue of Clause 19.32.1 above in respect of fees or charges for which a Provisional Sum is included in the Contract Bills, the amounts paid or payable in respect of any insurance maintained in compliance with clauses 19.56 and 19.57 herein below, the tender sum (or such other sum as is appropriate in accordance with the terms of the tender) for any work for which a tender made under Clause 19.37.6 above is accepted and the value of any work executed by the Contractor for which a Provisional Sum mentioned in the Contract Bills or arising under Employer / Engineer In Charge Instructions. issued under Clause 19.41.2 above as the case may be, and the balance after allowing in all cases pro-rata for the Contractor's profit at the contract price shown in the Contract Bills, shall be added to or deducted from the Contract Sum. Provided that no deduction shall be made in respect of any damages paid or allowed to Contractor by any Sub-Contractor or Supplier.
- 19.42.7 So soon as is practicable but before the expiration of the "Period for issue of Final Certificate" stated in the Appendix hereto or from completion of making good defects under Clause 19.52 herein below or from receipt by the EMPLOYER / Engineer In Charge of the documents referred to in Clause 19.42.5 above whichever is the latest, the EMPLOYER / Engineer In Charge shall issue the Final Certificate. The Final Certificate shall state:
- 19.42.7.0 The sum of the amount paid to the Contractor under Interim Certificates and the amount named in the said Appendix as limit of Retention Fund, and
- 19.42.7.1 The Contract Sum adjusted as necessary in accordance with the terms of this General Conditions of Contract and the difference (if any) between the two sums shall be expressed in the said Certificate as a balance due to the Contractor from Employer or to Employer from the Contractor as the case may be, and subject to any deductions authorised by this General Conditions of Contract, the said balance shall as from the fourteenth day after the issue of the said Certificate be a debt payable as the case may be by Employer to the Contractor or by the Contractor to Employer.
- 19.42.8 Unless a written request to concur in the appointment of an Arbitrator shall have been given under Clause 19.66 herein below by either party before the Final Certificate has been issued or by the Contractor within twenty eight days after such issue, the said Certificate shall be conclusive evidence in any proceedings arising out of this Contract (whether by Arbitration under Clause 19.66 herein below or otherwise) that the Works have been properly carried out and completed in accordance with the terms of this Contract and that any necessary effect has been given to all the terms of this Contract which require an adjustment to be made to the Contract Sum, except and in so far as any sum mentioned in the said Certificate is erroneous by reason of:
- 19.42.8.0 Fraud dishonesty or fraudulent concealment relating to the Works, or any part thereof, or to any matter dealt with in the said Certificate; or
- 19.42.8.1 Any defect (including any omission) in the Works, or any part thereof which reasonable inspection or examination at any reasonable time during the carrying out of the Works or before the issue of the said Certificate would not have disclosed; or
- 19.42.8.2 Any accidental inclusion or exclusion of any work, materials, goods or figure in any computation or any arithmetical error in any computation.
- 19.42.9 Save as aforesaid no Certificate of the EMPLOYER / Engineer In Charge shall of itself be conclusive evidence that any

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works materials or goods to which it relates are in accordance with this Contract.

- 19.42.10 The Contractor, before settlement of payment against Final Bill, shall sign and deliver to Employer, either in the measurement books or otherwise, as may be required, a valid release and discharge from any and all claims and demands whatsoever from Employer for all matters arising out of this Contract, except in respect of Defects Liability under Clause 19.52.

19.43 CLAIMS FOR EXTRA

- 19.43.0 When any instruction or decision given at Site involves an extra or whereby the Contractor may plan to claim an extra, it shall be the responsibility of the Contractor to inform EMPLOYER / Engineer In Charge / Architects of the extra amount and get written authorisation from EMPLOYER / Engineer In Charge / Architects before proceeding with the work involved.
- 19.43.1 Any modification carried out for expediting or simplifying work at the request of the Contractor or his representatives shall not be taken as the basis for claiming an extra. However, if such modification shall also involve an extra, the rate for such modification shall be settled in advance and written authorisation obtained by the Contractor from EMPLOYER / Engineer In Charge before proceeding with the work involved. If no such information is given by the Contractor in writing to EMPLOYER / Architects / Engineer In Charge, such modification shall not be accepted as the basis for extra charge.

19.44 DEDUCTION FOR NON RECTIFIED AND INCOMPLETE WORKS

If the EMPLOYER / Engineer In Charge deems it in-expedient to correct work damaged or not done in accordance with the Contract, an equitable deduction from the Contract Sum as may be decided by the EMPLOYER / Engineer In Charge shall be made therefore.

19.45 FLUCTUATIONS

The Contractor shall not claim any extra for fluctuation for price and the Contract Sum shall not be subject to any rise or fall of prices, unless specifically provided otherwise.

19.46 DEWATERING

- 19.46.0 De-watering required, if any, shall be done conforming to BIS Code IS: 9759 (guide lines for de-watering during construction) and / or as per the specifications approved by the Engineer-in-Charge. Design of an appropriate and suitable dewatering system shall be the Contractor's responsibility. Such scheme shall be modified / augmented as the work proceeds based on fresh information discovered during the progress of work, at no extra cost. At all times during the construction work, efficient drainage of the site shall be carried out by the Contractor and especially during the laying of plain cement concrete, taking levels etc. The Contractor shall also ensure that there is no danger to the nearby properties and installations on account of such lowering of water table. If needed, suitable precautionary measures shall be taken by the Contractor. Also the scheme of dewatering adopted shall have adequate built in arrangement to serve as stand-bye to attend to repair of pumps etc. and disruption of power / fuel supply. Nothing extra shall be payable on this account.

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- 19.46.1 In trenches where surface water is likely to get into cut /trench during monsoons, a ring bund of puddle clay or by any other means shall be formed outside, to the required height, and maintained by the Contractor. Also, suitable steps shall be taken by the Contractor to prevent back flow of pumped water into the trench. Nothing extra shall be payable on this account.

19.47 MATERIALS AND WORKMANSHIP

- 19.47.0 All materials and workmanship unless otherwise specified shall be as per the relevant code of ISI Specification and of approved type and the Contractor shall immediately remove from the Works any material and/or workmanship which in the opinion of the EMPLOYER / Engineer In Charge are defective or unsuitable and shall substitute proper materials and/or workmanship at his own cost. The term approval used in connection with this Contract shall mean approval of EMPLOYER / Engineer In Charge and /Architects.
- 19.47.1 Where special makes or brands are called for they are mentioned as standard. Others of equal quality may be used provided approval is first obtained in writing from EMPLOYER / Engineer In Charge / Architects. Unless substitution is requested no deviation from the Specification will be permitted. Failure to propose the substitution of any article within thirty days after of award of the Contract will be deemed sufficient cause for denial of request for substitution.
- 19.47.2 The Contractor shall indicate and submit evidence in writing of those materials or articles called for in the Specifications that are not obtainable for installation in the Work within the time limits of the Contract. Failure to indicate the above, within thirty days after the award of the Contract, will be deemed sufficient cause for denial of request for extension of Contract time.
- 19.47.3 All materials shall be delivered so as to ensure speedy and uninterrupted progress of the Work. Such material shall be stored so as to cause no obstruction and so as to prevent overloading of any portion of the structure, and the Contractor shall be entirely responsible for damage or loss by weather or other cause.
- 19.47.4 Within thirty days after the award of the Contract, the Contractor shall submit for approval of EMPLOYER / Engineer In Charge a complete list of all materials he and his Sub- Contractors propose to use in the Work of definite brand or make which differ in any respect from those specified; also the particular brand of any article where more than one is specified as a standard. He shall also list items not specifically mentioned in the Specifications but which are reasonably inferred and necessary for the completion of the Work.

19.48 INSPECTION

- 19.48.0 All materials and workmanship shall be subject to inspection, examination and test by the Architect representative/ EMPLOYER / Engineer In Charge /or any inspecting Authority of Employer at any and all times during and/or after manufacture and/or construction. The Architect representative / EMPLOYER / Engineer In Charge and/or any Inspecting Authority of Employer shall have the right to reject defective material and workmanship or require its correction. Rejected workmanship shall be satisfactorily replaced with proper material without additional charge therefore and the Contractor shall promptly segregate and remove the rejected material from the Works. If the Contractor fails to proceed at once with the replacement of rejected materials and/or the correction of the defective workmanship, EMPLOYER / Engineer In Charge may by contract or otherwise replace such materials and/or

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correct such workmanship and charge the cost thereof to the Contractor, or may terminate the right of the Contractor to proceed further with the Work.

- 19.48.1 The Contractor shall furnish promptly without additional charge all reasonable facilities, labour and materials necessary for the safe and convenient inspection and test that may be required by the Architect representative /EMPLOYER / Engineer In Charge and/or the Inspecting Authority of Employer.

19.49 DEFECTS

- 19.49.0 The Contractor shall make good at his own cost and to the satisfaction of the Employer and Architect representative / Engineer In Charge, all defects, shrinkages, settlements or other faults, arising in the opinion of the Architect representative and EMPLOYER / Engineer In Charge from work or materials not being in accordance with the Drawings or Specifications which may appear within "Defects Liability Period" referred to in the Appendix hereto.
- 19.49.1 Such defects, shrinkages, settlements or other faults shall upon directions in writing of the EMPLOYER / Engineer In Charge, and within such reasonable time as shall be specified therein be amended and made good by the Contractor, at his own cost unless the EMPLOYER / Engineer In Charge shall decide that he ought to be paid for such amending and making good and in case of default. Engineer In Charge may employ and pay other contractor/s to amend and make good such defects, shrinkage, settlements or other faults and all damages loss and expense consequent thereon or incidental thereto shall be made good and borne by the Contractor and such damage, loss or expense shall be recoverable from him by EMPLOYER / Engineer In Charge or may be deducted by EMPLOYER / Engineer In Charge upon the Architect's certificate in writing from any amount due or may become due to the Contractor or EMPLOYER / Engineer In Charge may, in lieu of such amending and making good by the Contractor deduct from any moneys due to the Contractor a sum to be determined by the Architect as equivalent to the cost of amending such work and in the event of the Retention Amount being insufficient, recover the balance from the Contractor together with any expenses EMPLOYER / Engineer In Charge may have incurred in connection therewith.

19.49.2 LEAVE AND LICENSE OF SITE, COMPLETION AND POSTPONEMENT

- 19.49.2.0 On the "Date of Commencement" stated in the Appendix hereto grant a non-exclusive license to the Contractor to enter the Site and begin the Works and regularly and diligently proceed with the same and who shall complete the same on or before the "Date of Completion" stated in the Appendix hereto subject nevertheless to the provisions for extension of time contained in Clause 19.50 herein below.
- 19.49.3 EMPLOYER / Engineer In Charge may issue instructions in regard to the postponement of any work to be executed under the provisions of this Contract.
- 19.49.4 At any time or times before Virtual Completion of the Work, EMPLOYER / Engineer In Charge with the consent of the Contractor can cancel license granted to the Contractor and grant license or such other right of any part or parts of the Site for his own use and/or for handing over to any other contractor or agency for carrying out his work referred above, then notwithstanding anything expressed or implied elsewhere in the Contract:
- 19.49.4.0 Such part or parts shall not be deemed to be virtually complete.
- 19.49.4.1 Virtual completion of such part or parts would occur on the completion of the last element of Work in such part or parts under this Contract.

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19.49.4.2 The Contractor shall not claim that such part or parts are complete and request refund of payments in lieu thereof.

19.50 EXTENSION

19.50.0 Subject to the obligation of the Contractor to pay penalty for delay and further if Employer has not terminated the contract as per the terms contained herein, upon it becoming reasonably apparent that the progress of the Works is delayed, the Contractor shall forthwith (within a maximum period of seven days) give written notice of the cause of the delay to EMPLOYER / Engineer In Charge and if, in the opinion of the Architect, the completion of the Work is likely to be or has been delayed beyond the "Date of Completion" stated in the Appendix hereto or beyond any extended time previously fixed under this clause:

19.50.0.0 By force majeure, or

19.50.0.1 By reason of any exceptionally inclement weather, or

19.50.0.2 By reason of loss or damage occasioned by any one or more of the contingencies referred to in Clause 19.57 herein below, or

19.50.0.3 By reason of civil commotion, local combination of workmen strike or lockout affecting any of the trades employed upon the Works or any of the trades engaged in the preparation, manufacture or transportation of any of the goods or materials required for the Work, or

19.50.0.4 By reason of Architect's representative and/or EMPLOYER / Engineer In Charge's instructions issued under Clauses 19.20, 19.41 and/or 19.49.3 above, or

19.50.0.5 By reason of Contractor not having received in due time necessary instructions, drawings, details or levels from EMPLOYER / Engineer In Charge for which he specifically applied in writing on a date which having regard to the "Date of Completion" stated in Appendix hereto or to any extension of time then fixed under Clause 19.50.0 herein was neither unreasonably distant from nor unreasonably close to date on which it was necessary for him to receive the same, or

19.50.0.6 By delay on the part of Nominated Sub- Contractors or Nominated Suppliers which the Contractor has taken all practicable steps to avoid or reduce, or

19.50.0.7 By delay on the part of artists, tradesmen or others engaged by Employer in executing work not forming part of this Contract, or

19.50.0.8 By reason of the opening up for inspection of any work covered up or of the testing of any of the works, materials or goods in accordance with Clause 19.48 above (including making good in consequence of such opening up or testing) unless inspection of test showed that the work materials or goods were not in accordance with this Contract, or

19.50.0.9 By reason of the Contractor's inability for reason beyond his control and which he could not reasonably have foreseen at the date of this Contract to secure such labour, goods or materials as are essential to the proper carrying out of the Works, then the EMPLOYER / Engineer In Charge shall so soon as he is able to estimate the length of the delay beyond the date or time aforesaid make in writing a fair and reasonable extension of time for completion of Works, provided always that the Contractor shall use constantly his best endeavours to prevent delay and shall do all that may reasonably be required to the satisfaction of the Architect representative /

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EMPLOYER / Engineer In Charge to proceed with the Work.

- 19.50.1 The Contractor will forfeit his claim for extension if he does not report the cause of delay in completion date within seven days of date of occurrence.

19.51 DAMAGES FOR NON-COMPLETION OR BREACH

- 19.51.0 If the Contractor fails to complete the Works by the "Date of Completion or the Date of Virtual Completion" stated in the Appendix hereto or within any extended time fixed under Clause 19.50 above and the EMPLOYER / Engineer In Charge certifies in writing that in his opinion the same ought reasonably so to have been completed, the Contractor shall pay or allow to Employer a sum calculated at the rate stated in the Appendix hereto as "Liquidated Damages" for period during which said work shall so remain or have remained incomplete & Employer may deduct such damages from any moneys otherwise payable to Contractor under this Contract. Notwithstanding the above, in case of any loss or damage caused to Employer due to negligence or due to a breach committed by the Contractor, the Contractor shall be liable to compensate the actual loss or damage suffered by Employer without any upper cap on such damages.

19.52 VIRTUAL COMPLETION AND DEFECTS LIABILITY PERIOD

- 19.52.0 As soon as the Works are virtually complete, the Contractor shall inform the fact to EMPLOYER / Engineer In Charge and if in the opinion of the EMPLOYER / Engineer In Charge the Works are practically completed, he shall forthwith issue a certificate to that effect and Virtual Completion of the Work shall be deemed for all the purpose of this Contract to have taken place on the day named in such certificate.
- 19.52.1 Any defects shrinkages or other faults which shall appear within the "Defects Liability Period" stated in the Appendix hereto, and which are due to materials and workmanship not in accordance with this Contract shall be specified by the Architect in a "Schedule of Defects" which he shall deliver to the Contractor not later than fourteen days after the expiration of the said "Defects Liability Period" and within a reasonable time after receipt of such "Schedule of Defects" the defects, shrinkages and other faults therein specified shall be made good by the Contractor and (unless the Engineer In Charge / EMPLOYER shall otherwise instruct in which case the Contract Sum shall be adjusted accordingly) entirely at his own cost.
- 19.52.2 Notwithstanding Clause 19.52.1 above, the EMPLOYER / Engineer In Charge may whenever he considers it necessary so to do, issue instructions requiring any defects, shrinkages or other fault which shall appear within the "Defects Liability Period" named in the Appendix hereto and which is due to materials and workmanship not in accordance with this Contract to be made good and the Contractor shall within a reasonable time (which shall be specified in such instructions of the Architects representative/ EMPLOYER / Engineer In Charge) after receipt of such instructions comply with the same (and unless the Architect representative/ EMPLOYER / Engineer In Charge shall otherwise instruct in which case the Contract sum shall be adjusted accordingly) entirely at his own cost. Provided that no such instruction shall be issued after 14 days from the expiration of the said "Defects Liability Period".
- 19.52.3 When in the opinion of the Architect any defects shrinkages or other faults which he may have required to be made good under Clauses 19.52.1 and 19.52.2 above shall have been made good he shall issue a certificate to that effect, and completion of making good such defects, shrinkages or other faults shall be deemed for all the purposes of this

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Contract to have taken place on the day named in such certificates.

19.52.4 In no case shall the Contractor be required to make good at his own cost any damage which may appear after the Virtual Completion of the work, unless the EMPLOYER / Engineer In Charge shall certify that such damage is due to injury which took place before Virtual Completion of the Works.

19.53 LOSS & EXPENSE CAUSED BY DISTURBANCE OF REGULAR PROGRESS OF THE WORKS

19.53.0 If upon written application being made to him by the Contractor the EMPLOYER / Engineer In Charge / Architects is of the opinion that the Contractor has been involved in direct loss and/or expense for which he would not be reimbursed by a payment made under any other provision in this Contract by reason of the regular progress of the Works or of any part thereof having been materially affected by:

19.53.0.0 The Contractor not having received in due time necessary Instructions, Drawings, Details of Levels from the Architect representative / EMPLOYER / Engineer In Charge for which he specifically applied in writing on a date which having regard to the "Date of Completion" stated in the Appendix hereto was neither unreasonably distant from nor unreasonably close to the date on which it was necessary for him to receive the same; or

19.53.0.1 The opening up for inspection of any work covered up or the testing of any work material or goods in accordance with Clause 19.48 above (including making good in consequence of such opening up or testing) unless the inspection or test showed that the work materials or goods were not in accordance with this Contract; or

19.53.0.2 Any discrepancy or divergence between the Contract Drawings and/or the Contract Bills; or

19.53.0.3 Delay on the part of the Artists, Tradesmen or others engaged by Employer in executing work not forming part of this Contract; or

19.53.0.4 Architect's representative / EMPLOYER / Engineer In Charge's instructions issued in regard to the postponement of any work to be executed under the provisions of this Contract and if the written application is made within a reasonable time of it becoming apparent that the progress of the work or of any part thereof has been affected as aforesaid then the Architect shall ascertain the amount of such loss and/or expense. Any amount from time to time so ascertained shall be added to the amount which would otherwise be stated as due in such certificate.

19.53.1 The provisions of Clause 19.53.0 above are without prejudice to any other rights and remedies which the Contractor may possess.

19.54 PAYMENTS WITHHELD

19.54.0 The EMPLOYER / Engineer In Charge may withhold or on account of subsequently discovered evidence nullify whole/a part of any certificate to such extent as may be necessary in his reasonable opinion to protect Employer from loss on account of:

19.54.0.0 Defective work not remedied.

19.54.0.1 Failure of the Contractor to make payments properly to Sub- Contractor or for materials or labour or due to any breach of the terms of the Contract Documents.

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19.54.0.2 A reasonable doubt that Contract can be completed for balance then unpaid.

19.54.0.3 Damage to another contractor or Sub-Contractor.

19.54.0.4 Claims filed on reasonable evidence indicating probable filing of claims.

19.54.0.5 Noncompliance or violation of any laws by the Contractor or the Sub-Contractor.

19.54.1 When the above grounds are removed payment shall be made for amounts withheld because of them.

19.55 INJURY TO PERSONS AND PROPERTY OF EMPLOYER

19.55.0 The Contractor shall be liable for and shall indemnify Employer against any liability, loss, claim or proceedings whatsoever arising under any statute or at common law in respect of personal injury to or the death of any person whomsoever arising out of or in the course of or caused by the carrying out of the Works, unless due to any act or neglect of Employer or of any person for whom Employer is responsible.

19.55.1 The Contractor shall be liable for and shall indemnify Employer against any expense, liability, loss, claim or proceedings in respect of any injury or damage whatsoever to any property real or personal in so far as such injury or damage arises out of or in the course of or by reason of the carrying out of the Works, and provided always that the same is due to any negligence, omission or default of the Contractor, his servants or agents of any Sub-Contractor, his servant or agent.

19.56 INSURANCE AGAINST INJURY TO PERSONS AND PROPERTY

19.56.0 Contractor's All Risk Insurance Policy to cover the following:

19.56.0.0 Entire contract value for the period of completion including defects liability period.

19.56.0.1 Third party insurance to cover for any damages to third party. This shall be up to the end of the defects liability period and shall be up to end of the defects liability period and shall include for any damage to the properties and / or injury [including death] to the persons of the general / public / s and anyone else deemed to be third party.

19.56.0.2 Civil commotion, Riots, Strike, Malicious Damage, Terrorism, and other disturbances.

19.56.1 Policy to cover contractor's liability under workmen's compensation Act 1923, Minimum wages Act 1948, Contract Labour (Regulation and Abolition) Act 1970 and other relevant Acts listed elsewhere. This shall be for the period up to final completion of work, including the defects liability period.

19.56.2 Insurance cover against damage, theft or any other loss of all materials and equipment brought to site for which advance payment is claimed – Limit of liability not less than the value of such materials at any stage of the contract.

19.56.2.0 The Contractor shall insure against all such liabilities and shall continue such insurance during the currency of the contract including defects liability period. Premium for all insurance policies shall be paid and borne by the contractor and shall NOT be reimbursable.

19.56.2.1 These insurance certificates shall be fully executed and shall state that the policies cannot be cancelled until ten [10] days after written notice of the owner having consented to such cancellations.

19.56.2.2 The contractor shall obtain written confirmation of similar certificates from all sub-contractors and thereby assume responsibility for any claims or losses to Owner & Client resulting from failure of any of the sub – contractors

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to obtain adequate insurance protection in connection with their work [Contractor's All Risk Policy (C.A.R Policy)].

- 19.56.3 Such insurances as are necessary to cover the liability of the Contractor or as the case may be of such Sub-Contractor, in respect of personal injuries or deaths arising out of or in course of or caused by carrying out of Work; and
- 19.56.4 Such insurances as may be specifically required by the Contract Bills in respect of injury or damage to any property real or personal at Site arising out of or in the course of or by reason of carrying out of the Work, and caused by any negligence, omission or default of the Contractor, his servants or agents or, as case be of such Sub-Contractor, his servants or agents. The cost of all materials supplied by Employer shall be covered in insurance policy.
- 19.56.5 The Contractor shall produce or cause any Sub-Contractor to produce for inspection the relevant policy or policies of insurance together with the receipts in respect of premiums paid under such policy or policies as and when required so to do by the Employer / Engineering in charge provided always that as and when may be reasonably required by the Employer / Engineering in charge the production by either the Contractor or any Sub-Contractor of a current certificate of insurance from the company or firm which shall have issued the policy or policies afore said shall be a good discharge of the Contractor's obligation to produce or to cause the production of the policy or policies and the receipts in respect of premium paid.
- 19.56.6 The Contractor at his cost shall maintain in the joint names of Employer and Contractor such insurances as may be required in respect of any expense, liability, loss, claim or proceedings which Employer may incur or sustain by reason of injury or damage to property real or personal arising out of or in the course or by reason of the carrying out the Work, and caused otherwise than by the negligence, omission or default of the Contractor, his servants or agents or any Sub-Contractor, his servants or agents.
- 19.56.7 Any such insurance as is referred to in the Clause 19.56.6 above shall be placed with insurers to be approved by the EMPLOYER / Engineer In Charge / Architects and the Contractor shall have to deposit with the Employer / Engineering in charge, the policy or policies and the receipts in respect of premiums paid.
- 19.56.8 Should the Contractor or any Sub-Contractor make default in insuring or in continuing to insure as provided in Clauses 19.56.2 and 19.56.6 above or does not take the insurance policies, Employer shall himself insure against any risk with respect to which the default shall have occurred and may deduct a sum equivalent to the amount paid in respect of the premiums from any moneys due to or become due to the Contractor.

19.57 INSURANCE OF THE WORKS AGAINST FIRE ETC.

- 19.57.0 The Contractor at his cost shall in the joint names of Employer and Contractor insure against loss or damage by fire, storm, tempest, lightning, flood, earth-quake, aircraft or anything dropped there from, aerial objects, riot and civil commotion for the full value thereof all works executed (i.e., the work in progress building) and all unfixed materials and goods intended for, delivered to and place donor adjacent to the Work, including the cost of all materials supplied by Employer for the work which is in the custody of the contractor, but excluding temporary building plant, tools and equipment owned or hired by the Contractor or any Sub-Contractor and shall keep such work materials and goods so insured until Virtual Completion of the Work. Such insurances shall be with insurers approved by the Employer / Engineering in charge and the Contractor shall make Employer the beneficiary of the insurance policy and shall deposit with the Employer / Engineering in charge the policy or policies and the receipts

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in respect of premium paid; Should the Contractor make default in insuring or continuing to insure as aforesaid Employer / Engineering in charge may himself insure against any risk with respect of which the default shall have occurred and deduct a sum equivalent to the amount paid by him in respect of premium from any moneys due to or to become due to the Contractor. Provided always that if the Contractor shall independently of his obligations under this Contract maintain a policy of insurance which covers (inter-alia) the said Work, materials and goods against the aforesaid contingencies to the full value thereof then the maintenance by the Contractor of such policy shall if Employer's interest is endorsed thereon, be a discharge of the Contractor's obligation to insure in the joint names of Employer and the Contractor and the production by the Contractor as and when may reasonably be required by the Employer / Engineering in charge of a current certificate of insurance from the company or firm which shall have issued the said policy shall be a discharge of the Contractor's obligation to deposit with the Employer / Engineering in charge a policy or policies and the receipts in respect of premiums paid.

- 19.57.1 Upon settlement of any claim by the insurance companies under the insurances aforesaid, the Contractor with due diligence shall restore work damaged, replace or repair unfixed materials or goods which have been destroyed or injured, remove or dispose of any debris and proceed with the carrying out and completion of the Work. All moneys received from such insurances shall be paid to the Contractor by instalments under certificates of the EMPLOYER / Engineer In Charge issued at the "Period of Interim Certificates" named in the Appendix hereto. The Contractor shall not be entitled to payment in respect of the restoration of work damaged, the replacement and repair of any unfixed materials or goods and the removal and disposal of debris other than moneys received under said insurance.

19.58 DETERMINATION BY EMPLOYER

19.58.0 DEFAULT

If the Contractor shall make default in any one or more of the following respects, that is to say:

- 19.58.0.0 If he without reasonable cause wholly suspends the carrying out of the Works before completion thereof or commits a breach of the terms of the Contract Documents, or
- 19.58.0.1 If he fails to proceed regularly and diligently with the Works, or
- 19.58.0.2 If he refuses or persistently neglects to comply with a written notice from the EMPLOYER / Engineer In Charge requiring him to remove defective work or improper materials or goods and by such refusal or neglect the work is materially affected, or
- 19.58.0.3 If he fails to comply with the provision of Clause 19.36 above, then Employer may give him a notice by registered post or recorded delivery specifying the default; if the Contractor either shall continue such a default for fourteen days after receipt of such a notice and shall at any time thereafter repeat such a default (whether previously repeated or not), then Employer / Engineering in charge without prejudice to any other rights/remedies may within ten days after such continuance/repetition of notice by registered post or recorded delivery forthwith determine employment of Contractor under this Contract, provided that such notice shall not be given unreasonably.

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19.58.1 BANKRUPTCY OF CONTRACTOR

In the event of the Contractor becoming bankrupt or making a composition or arrangement with his creditors or being a company having a winding up order made or (except for purpose of reconstruction) a resolution for voluntary winding up passed or a receiver or manager of his business or undertaking duly appointed or possession taken by or on behalf of the holders of any debentures secured by a floating charge, of any property comprised in or subject to the floating charge, the employment of the Contractor under this Contract shall be forthwith automatically determined but the said employment may be reinstated and continued if Employer and the Contractor, his trustee in bankruptcy, liquidator, receiver or manager as the case may be shall so agree.

19.58.2 Employer shall be entitled to determine the employment of Contractor under this Contract, if Contractor shall have offered or given or agreed to give to any person any gift or consideration of any kind as an inducement or reward for doing or forbearing to do or for having done or forborne to do any action in relation to the obtaining or execution of this Contract with Employer, or for showing or forbearing to show favour or dis-favour to any person relating to this Contract or any other contract with Employer, or if the like acts shall have been done by any person employed by the Contractor or acting on his behalf (whether with or without the knowledge of the Contractor), or if in relation to this Contract or any other contract with Employer the Contractor or any person employed by him or acting on his behalf shall have committed any offense under prevention of corruption act, or shall have given any fee or reward the receipt of which is an offense under the Local Government Act.

19.58.3 In the event of the employment of the Contractor being determined as aforesaid and so long as it has not been reinstated and continued, the following shall be respective rights and duties of Employer and Contractor.

19.58.3.0 Employer may employ and pay other persons to carry out and complete the Works and he or they may enter upon the Works and use all temporary buildings, plant, machinery, appliances, goods and materials intended for, delivered to and placed on or adjacent to the Works and may purchase all materials and goods necessary for carrying out and completion of the Works.

19.58.3.1 The Contractor shall if so required by Employer within fourteen days of the date of determination assign to Employer without payment the benefit of any Agreement for the supply of materials or goods and/or for the execution of any works for the purposes of this Contract but on the terms that a supplier or Sub-Contractor shall be entitled to make any reasonable objection to any further assignment thereof by Employer. In any case Employer may pay any supplier or Sub-Contractor for any materials or goods delivered or Works executed for the purpose of the Contract (whether before or after the date of determination), in so far as the price thereof has not already been paid by the Contractor. Employer's rights under this Clause are in addition to his rights to pay nominated Sub-Contractors as provided in Clause 19.37.1 above and payments made under this Clause may be deducted from any sum due or to become due to the Contractor.

19.58.3.2 The Contractor shall as and when required in writing by Employer so to do (but not before) remove from the Works any temporary buildings, plant, tool equipment's, goods and materials belonging to or hired by him. If within a reasonable time after any such requirements has been made the Contractor has not complied therewith, then Employer may (but without being responsible for any loss or damage) remove and sell any such property of the Contractor, holding the proceeds less all costs incurred to the credit of the Contractor.

19.58.3.3 The Contractor shall allow or pay to Employer in the manner hereinafter appearing the amount of any direct loss

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and/or damage caused to Employer by the determination. Until after completion of the Works above, Employer shall not be bound by any provisions of this Contract to make any further payment to the Contractor, but upon such completion and the verification within a reasonable time of the accounts therefore the Architect shall certify the amount of expense properly incurred by Employer and the amount of any direct loss and/or damage caused to Employer by the determination and if such amounts when added to the moneys paid to the Contractor before the date of determination exceed the total amount which would have been payable on due completion in accordance with this Contract, the difference shall be a debt payable to Employer by the Contractor; and if the said amounts, when added to the said moneys be less than the said total amount, the difference shall be a debt payable by Employer to the Contractor.

19.59 DETERMINATION BY THE CONTRACTOR

19.59.0 Without prejudice to any other rights and remedies which Contractor may possess, if:

19.59.0.0 Employer / Engineering in charge does not pay to the Contractor the amount due on any certificate within 90 days of receipt of the certificate issued by the EMPLOYER / Engineer In Charge and continues such default for thirty days after receipt by registered post or recorded delivery of a notice from the Contractor stating that notice of determination under this Condition will be served if payment is not made within thirty days from receipt thereof.

19.59.1 Upon such determination, then without prejudice to the accrued rights or remedies of either party or to any liability of the classes mentioned in Clause 19.53 above which may accrue either before the Contractor or any Sub-Contractors shall have removed his or their temporary buildings, plant, machinery, appliances, goods or materials or by reason of his or their so removing the same, the respective rights and liabilities of the Contractor and Employer / Engineering in charge shall be as follows that is to say:

19.59.1.0 The Contractor shall with all reasonable dispatch and in such manner and with such precautions as will prevent injury, death or damage of the classes in respect for which before the date of determination he was liable to indemnify Employer under Clause 19.55 above, remove from site all his temporary buildings, plant, machinery, appliances, goods and materials and shall give facilities for his Sub-Contractors to do the same but subject always to the provisions of sub-paragraph (c) of Clause 19.59.1.1 herein below.

19.59.1.1 After taking into account amounts previously paid under this Contract, the Contractor shall be paid by Employer:

19.59.1.1.0 The total value of the Works completed at the date of determination.

19.59.1.1.1 The total value of work begun and executed but not completed at the date of determination the value being ascertained mutates in accordance with Clause above.

19.59.1.1.2 The cost of materials or goods properly ordered for the Works for which the Contractor shall have paid or of which the Contractor is legally bound to pay, and on such payment by Employer materials or goods so paid for shall become the property of Employer.

19.60 COORDINATION OF WORK

19.60.0 At the commencement of Work, and from time to time, the Contractor shall confer with the Sub-Contractors, persons engaged on separate contracts in connection with the Work, and with the Architect for the purpose of the

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coordination and execution of the various phases of the Work.

- 19.60.1 The Contractor shall ascertain the Sub-Contractors, persons engaged on separate contracts in connection with the Works, the extent of all chasing, cuttings and forming of all openings, holes, grooves, etc. as may be required to accommodate the various services, the routes of all services and the positions of all floor outlets, traps, etc. in connection with the installation of plant and services and arrange for the construction of Work accordingly. The breaking and cutting of completed work must be avoided.

19.61 LABOUR, VEHICULAR MOVEMENTS AND TEMPORARY ROADS

The Contractor shall employ no child labour less than 18 years of age on Work. If female labour is engaged, the Contractor shall make necessary provision for safeguarding children and keeping them clear of site of operations. Labourer shall reside within compound include authorised guards. Female workers will not be allowed to work between 1830 and 0630 hours. The contractor is not to make temporary roads until approval from the Project in charge is given. Site access and circulation roads are to be on the lines agreed with the Project in charge. No vehicle other than those specifically allowed by the Project in charge shall be permitted on site.

19.62 PROTECTION OF TREES AND SHRUBS

Trees and shrubs designated by the Employer/ Architects / Engineer In Charge shall be protected from damage during the course of the Work and the earth level shall not be changed within immediate surroundings of such trees & shrubs. Where necessary, such trees and shrubs shall be protected by means of temporary fencing.

19.63 GUARANTEE

- 19.63.0 Besides guarantees required elsewhere, the Contractor shall guarantee the Work in general for one year as noted under Clause 19.49 above.
- 19.63.1 All required guarantees shall be submitted to Employer by the Contractor through EMPLOYER, when requesting certification of accounts for payment by Employer.

19.64 ANTIQUITIES

- 19.64.0 All fossils and other objects of interest or value which may be found on the Site or in excavating the same during the progress of the Work shall become the property of Employer. The Contractor shall carefully take out and preserve all such objects and shall immediately or as soon as conveniently may be after the discovery of such articles deliver the same into the possession of /Clerk-of-Works / EMPLOYER / Engineer In Charge uncleaned and as excavated.
- 19.64.1 If in the opinion of the EMPLOYER / Engineer In Charge / compliance with the provisions of Clause 19.64 above has involved the Contractor in direct loss and/or expense for which he would not be reimbursed by a payment made under any other provision in this Contract then the EMPLOYER / Engineer In Charge shall ascertain the amount of such loss and/or expense. Any amount, from time to time, so ascertained shall be added to the Contract Sum, and if an Interim Certificate is issued after the date of ascertainment any such amount shall be added to the amount which would otherwise be stated as due in such certificates.

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19.65 EXCEPTED MATTERS

The decision, opinion, direction, certificate (except for payment) with respect to all or any of the matters under Clauses 19.17, 19.20, 19.30, 19.36, 19.37, 19.47, 19.50.0, 19.50.0.1, 19.50.0.6 and 19.58 hereof (which matters are herein referred to as the Excepted Matters) shall be final and conclusive and binding on the parties hereto and shall be without appeal. Any other decision, opinion, direction, certificate or valuation of the EMPLOYER/ Engineer In Charge or any refusal of the EMPLOYER / Engineer In Charge to give any of the same shall be subject to any right of Arbitration and review in the same way in all respects (including the provision as to opening the reference) as hereinafter provided.

19.66 ARBITRATOR

- 19.66.0 All dispute and differences of any kind whatever arising out of or in connection with the Contract or the carrying out of the works (whether during the progress of the works or after their completion and whether before or after the determination, abandonment or breach of the Contract) shall be referred to and settled by the EMPLOYER who shall state his decision in writing. Such decision may be in the form of a Final Certificate or otherwise. The decision of the EMPLOYER with respect of any of the Excepted Matters (referred to under Clause 19.65 hereinabove) shall be final and without appeal; but if either Employer or the Contractor be dissatisfied with the decision of the EMPLOYER on any matter, question or dispute of any kind (except any of the Excepted Matters) or as to the withholding by the EMPLOYER of any certificate to which the Contractor may claim to be entitled then and in any such case either party (Employer or the Contractor) may within 28 (twenty eight) days after receiving notice of such decision give a written notice to the other party through the EMPLOYER requiring that such matters in dispute be Arbitrated upon. Such written notice shall specify the matters which are in dispute and such dispute or difference of which such written notice has been given and no other shall be and is hereby referred to the Arbitration and final decision of a single Arbitrator to be agreed upon and appointed by both the parties or in case of disagreement as to the appointment of a single Arbitrator to the Arbitration of two Arbitrators one to be appointed by each party, which Arbitrators shall before taking upon themselves the burden of reference appoint an Umpire (third Arbitrator).
- 19.66.1 The Arbitrator, Arbitrators or the Umpire as the case may be shall have power to open up review & revise any certificate opinion, decision, requisition or notice save in regard to the Excepted Matters (referred to in Clause 19.65 hereinabove) and to determine all matters in dispute which shall be submitted to him/them and of which notice shall have been given as aforesaid.
- 19.66.2 Upon every or any such reference the cost of and incidental to the reference and Award respectively shall be to the direction of the Arbitrator or Arbitrators or the Umpire as the case may be who may determine the amount thereof or direct the same to be taxed as between Attorneys and Employer or as between party and party and shall direct by whom and to whom and in what manner the same shall be borne and paid. This submission shall be deemed to be a submission to Arbitration within the meaning of the Arbitration and Conciliation Act 1996 or any modification thereof for the time being in force. The Award of the Arbitrator or Arbitrators or the Umpire as the case may be shall be final and binding on the parties. Such reference except as to the withholding by the Architect of any Certificates under Clause 19.54 hereinabove to which the Contractor claims to be entitled shall not be opened or entered upon until after the completion or alleged completion of the works or until after the practical cessation of the works arising from any cause unless with the written consent of Employer and the Contractor. Provided always

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that Employer shall not withhold the payment of an Interim Certificate nor the Contractor except with the consent in writing of the EMPLOYER in any way delay the carrying out of the works by reason of any such matters, question or dispute being referred to Arbitration but shall proceed with the work with all due diligence and shall until the decision of the Arbitrator or Arbitrators or the Umpire as the case may be, given, abide by the decision of the EMPLOYER and no Award of the Arbitration or the Arbitrators or the Umpire as the case may be shall relieve the Contractor of his obligations to adhere strictly to the EMPLOYER's instructions with regard to the actual carrying out of the works. Employer & Contractor hereby also agree that Arbitration under this clause shall be condition precedent to any right of action under the Contract.

19.67 PROTECTION AND CLEANING

- 19.67.0 The Contractor shall protect and preserve the Work from all damage or accident providing any temporary roof, window and door coverings, boxing or other construction as required by the EMPLOYER / Engineer In Charge / Architects. This protection shall be provided for all property adjacent to the Site as well as on the Site.
- 19.67.1 The Contractor shall properly clean the Work as it progresses and shall remove all rubbish and debris from the Site from time to time as is necessary and as directed. On completion, the Contractor shall ensure that the premises and/or Site are cleaned, surplus materials debris, sheds etc. removed, areas under floors cleared of rubbish, gutters and drains cleared, doors and sashes eased, locks and fastenings oiled, keys clearly labelled and handed over to the Clerk— of— Works so that the whole is left fit for immediate occupation or use and to the satisfaction of EMPLOYER / Engineer In Charge

19.68 Permits and Approvals

The Contractor shall identify, in cooperation with EMPLOYER / Engineer In Charge and the Architect where required, all filings, inspections, approvals, permits or certifications required by the contractor for commencement, continuation and completion of the Works, and the costs associated with obtaining each of the same, which costs shall be borne by the Contractor and charged to Employer separately and not as part of the tender.

19.69 Regulatory Submissions and Governmental Hearings

The Contractor shall assist in completing the relevant documentation and schedules for any regulatory submissions required to be made for any approvals required from Governmental Instrumentalities in relation to the Work/s to be performed under the contract. The Contractor shall attend all hearings as may be required by Employer / Architects. The Contractor shall also attend and, to the extent required by Employer / Architects, participate in all hearings in connection with violations committed by the Contractor, of any applicable Laws, Codes or Consents.

19.70 TOLERANCE

- 19.70.0 The Contractor shall exercise every care to ensure that all structural members are sufficiently plumb and true to dimensions called for on the Drawings to receive prefabricated finishing elements such as doors, windows, cabinet work, ceramic work, concrete, tiles etc. Any variations may require rectification in the structural members or may involve remaking or replacing the finishing elements, fabricated to fit into the openings or spaces, as called for on

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PAN NO. AJJPR2794N GSTIN No.: 07AJJPR2794N1ZC
Contact: 9911992045

the Drawings.

19.70.1 In case of separate contract, the contractor whose work does not conform to dimensions called for, shall be liable for all the expenses which may have to be incurred for rectification or replacement as may be required by the EMPLOYER /Engineer In Charge for the proper installation of the finishing elements. The EMPLOYER / Engineer In Charge decision in this respect shall be final and binding on the parties concerned.

19.71 LANGUAGE FOR COMMUNICATION

The language for communication between the Contractor, Employer/Architects and the Architect and also any other parties directly or indirectly associated with the contract shall be "ENGLISH".

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19.72 APPENDIX HERE IN BEFORE MENTIONED

Sl No	Clause	Stipulations
1	Date of Commencement	Date of Handing over of site or Date of signing of LOI for the above contract for a particular stage of work whichever is later
2	Period of Completion	2 Months from date of issue of LOI
3	Defects Liability Period	12 (Twelve) Months from the Date of Virtual Completion.
4	Retention Percentage	5% (Five) Per cent of Certified Gross Bill Value.
5	Limit of Retention Fund	5% (Five) Per cent of the Contract Value.
6	Period of Interim Certificate	Monthly and minimum bill value should be Rs. ____ Lakhs (Rupees _____ Lakhs Only)
7	Period of Honouring EMPLOYER / Engineering in charge Certificate	21 (Twenty One) working days from the submission of running account bills for EMPLOYER / EMPLOYER / Engineer In Charge's approval and certification.
8	Period of Final Measurement & Valuation	45 (Forty Five) days from the Date of virtual completion, subject to successful completion of an audit by Employer or its representatives based on the inputs provided by the Contractor, duly verified by EMPLOYER / Engineer In Charge and approved by EMPLOYER/Architects.
9	Period for Issue of Final Certificate	45 (Forty Five) Days from the end of Defects Liability Period.
10	Liquidated Damages	0.25% of Contract value per day delay subject to a maximum of 7.5% after which the contract gets terminated at the option of Employer. Notwithstanding the above, in case of any loss or damage caused to Employer due to negligence or due to a breach committed by the Contractor, the Contractor shall be liable to compensate the actual loss or damage suffered by Employer without any upper cap on such damages. The penalty levied on the contractor shall be subsequently deducted from the RA bills.

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Authorised Signature

M/s. Riya Enterprises